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UNITED STATES AIR FORCES IN
EUROPE-AIR FORCES AFRICA

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EUROPE-AIR FORCES AFRICA
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Personnel

ADMINISTRATION OF LOCAL NATIONAL INDIRECT HIRE CIVILIAN EMPLOYEES IN THE UNITED KINGDOM

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This instruction implements Air Force Policy Directive (AFPD36-1), *Appropriated Funds Civilian Management and Administration*, AFPD 34-3, *Nonappropriated Funds Personnel Management and Administration*. It provides supervisors of British Ministry of Defence (MOD) civil servant employees a summary of US Air Force and British MOD policies, regulations, and procedures that must be observed in the administration and management of indirect hire employees. It serves as a practical aid to supervisors in learning how best to accomplish their personnel management responsibilities under the British MOD personnel system. This instruction applies to all USAFE-AFAFRICA Regular Air Force. This instruction does not apply to all Air Force Reserves and Air National Guard members. Ensure that all records created as a result of processes prescribed in this publication are maintained in accordance with (IAW) AFI 33-322, *Records Management and Information Governance Program*, and disposed of IAW Air Force Records Information Management System Records Disposition Schedule. Refer recommended changes and questions about this publication to the Office of Primary Responsibility (OPR) using the AF Form 847, *Recommendation for Change of Publication.* The authorities to waive wing, and unit level requirements in this publication are identified with a tier number ("**T-0, T-1, T-2, T-3**") following the compliance statement. See Department of the Air Force Instruction (DAFI) 33-360, *Publications and Forms Management*, for a description of the authorities associated with the Tier numbers. Submit requests for waivers through the chain of command to the appropriate Tier waiver

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SUMMARY OF CHANGES

This document has been revised and needs to be complete reviewed. Major changes include: Change to publication number from USAFEI36-704 to USAFE-AFAFRICAI36-108. Updates to office symbols, DoD, DAF, USAFE forms and references. Updates to **paragraph 3.14.8**, Health and Safety to reflect "Memorandum of Agreement between the United States Force, MOD and the UK Health and Safety Executive, Concerning the Health and Safety at Work Act 1974". Updates to **paragraph 5.9.4** to set forth that US Forces do not recognize MoD Trade Unions. Updates to **paragraph 6.4.3.3** to include applicability of RIF procedures for both employment systems, Local National Direct Hire and MoD. Updates to **Attachment 5**, MOD-US Forces Joint Grievance Policy to reflect the most recent version as approved by USAFE-AFAFRICA/A1K and MoD. Additional changes to this publication will be forthcoming upon receiving MoD updated information.

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Chapter 1

ORGANIZATION FOR CIVILIAN PERSONNEL ADMINISTRATION IN THE UK

Section 1A—USAFE-Ministry of Defence (MOD) Arrangement

1.1. Background. UK civilian employees filling US Forces-appropriated fund indirect hire positions in the UK are employed, administered, and utilized under the terms of the Arrangement between the United States Air Forces in Europe (USAFE) and the Ministry of Defence (MOD) of the UK of Great Britain and Northern Ireland concerning the employment of MOD civil servants on US installations (other than locations for which separate arrangements exist) in the UK (the Arrangement). A copy of the Arrangement can be found at **Attachment 4**. Under the Arrangement, the MOD is the legal employer and the US Force the utilizer. Supervisors of MOD civil servants should bear this in mind when referring to this instruction. Close coordination with officials of the MOD on all matters relating to the administration of these employees is important in the interest of the best possible relations with both the work force and the host government.

1.2. Responsibilities. Under the Arrangement the responsibilities of both parties are set out in **Sections 1**, **2** and **3** and briefly are as follows:

1.2.1. The MOD:

1.2.1.1. Recruit employ administer and pay UK civilian employees requested by the US Force in appropriated fund activities in the UK.

1.2.1.2. Maintains official personnel records, processes personnel actions, conducts employee and supervisory orientation and training activities.

1.2.1.3. Provides advisory services to US Force supervisors on all matters pertaining to the daily operation of the indirect hire program, and handles other administrative functions.

1.2.2. The US Forces:

1.2.2.1. Determine the number, type, and duties of positions required.

1.2.2.2. Participate in the selection of applicants for employment with the US Force as specified in **Section 2.**

1.2.2.3. Make recommendations on personnel and disciplinary actions. Assist in the case work.

1.2.2.4. Provide an incentive awards program.

1.2.2.5. Determine training needs and conduct all on-the-job training and certain off-the-job-training.

1.2.2.6. Exercise normal management and supervisory prerogatives and responsibilities.

1.3. Reimbursement. The MOD is reimbursed for costs incurred on behalf of the US Forces. This includes employees‘ pay, monetary benefits; staff transfer costs; and other items as detailed in Annex A to the Arrangement.

Section 1B—Organization for Civilian Personnel Administration

1.4. Organization Concept. The organizational structure established to administer MOD civilian employees utilized by the US Force stems primarily from the status of UK indirect hire employees as employees of the MOD and members of the British Civil Service. The US Force retain most of their managerial prerogatives while being relieved of the burden of administering civilian employees in a foreign country. The British government is assured that British citizens are accorded equitable treatment and payment under local practices; and the employees enjoy the status and benefits of civil servants of their own country.

1.5. MOD Responsibilities. The MOD retains ultimate responsibility for implementing the terms of the Arrangement, but has designated the Commander-in-Chief, RAF HQ Air Command, as the officer responsible for the implementation of the Arrangement. Within RAF HQ Air Command, the Command Secretary is responsible for the administration of the entire civilian work force, including those employees utilized by the US Forces. In order to assist in performing this function for the US Force, a MODLO has been formed, and MODPOs located at major US installations, responsible to RAF HQ Air Command.

1.5.1. **MODLO.** The MODLO is located at RAF Mildenhall. It is responsible, within delegation limits, for some aspects of the administration of the indirect hire work force, job classification, supervisor training, statistical reporting, and the computation and claiming of financial reimbursement from the US Forces. The MODLO acts as advisor to the Commander and staff, Third Air Force, and other US Forces commanders and staffs in the UK on matters relating to the utilization of MOD civil servants according to the above cited arrangement.

1.5.2. **MODPO.** These offices are located at bases where significant numbers of MOD civilians are employed. They have certain delegated personnel management responsibilities for the MOD workforce, including initial recruitment and placement, employee orientation, and control of time and attendance reporting. They furnish advice and guidance to employees, supervisors, and managers relating to personnel management and administration and utilization of MOD employees, and act as a point of contact between the supervisor or manager and the RAF Commander, MODLO, or RAF HQ Air Command and the Trade Unions.

1.5.3. **RAF Commander.** The RAF Commander is the senior RAF representative at RAF stations occupied by the US Force under the NATO Status of Forces Agreement (SOFA). Duties include advising the US Forces commander on the overall administration and discipline of all MOD civilians at the installation employed by the MOD under the Arrangement.

1.6. Civilian Personnel Office (CPO). This organization is located at RAF Mildenhall. The CPO provides personnel administration for all serviced US citizen employees and direct hire non-US citizen employees located in their servicing areas. In the administration of the indirect hire employment system the CPO‘s responsibilities are:

1.6.1. Identifying and scheduling supervisors who require training in the management of MOD employees.

1.6.2. Processing training requests and the coordinating applicable training requirements. The training of supervisors in the managerial aspects of their civilian management responsibilities.

1.6.3. Monitoring the overall administration of the indirect hire program insofar as it affects serviced organizations. Maintaining liaison with the MODLO and the MODPO is to ensure that timely and adequate service is provided, particularly with regard to filling positions.

1.6.4. The validation and certification of positions (see **paragraph 2.2**).

1.6.5. The maintenance of position data and agreed employee data in the Defense Civilian Personnel System (DCPDS) from which Supervisor's Employee Brief-971 is produced.

1.7. Chief, Personnel Programs Division (USAFE-AFAFRICA/A1K). The USAFE-AFAFRICA/A1K acts for the USAFE-AFAFRICA Commander (USAFE-AFAFRICA/CC) and exercises his delegated authority jointly with representatives of other service components in countries where joint committees are established. USAFE-AFAFRICA/CC has delegated authority to establish salaries, wages, fringe benefits, related compensation items, and other terms of employment for foreign national employees in the USAFEAFAFRICA area of responsibility as required by DoDI 1400.25 Volume 1231. **(T-2)**. Therefore, USAFE-AFAFRICA/A1K is responsible to administer and implement policies for foreign national employment programs within the USAFE-AFAFRICA area of responsibility.

Chapter 2

ESTABLISHING AND FILLING POSITIONS

Section 2A—Position Control

2.1. Introduction. The classification of positions and the processing of personnel actions are the responsibilities of the MODLO. Responsibilities are exercised through the local MODPOs, working in conjunction with the USAF supervisors and management officials. The Standard Form 52, Request for Personnel Action, serves as the official request to the CPO for the MODLO to take the necessary action. This chapter provides specific guidance relating to the use of this form, together with information on the responsibility for position control, procedures for classifying positions, and the recruitment and selection processes. Local procedures may be established for the flow of the SF 52 from supervisor to the CPO, however, it must be remembered that no personnel action is taken until the SF 52 is processed by the CPO in accordance with this chapter.

2.2. Position Control. Position control is a responsibility of the United States Air Force. The CPO validates and certifies position or personnel actions against a Unit Manpower Document (UMD).

2.2.1. The CPO is responsible for providing the MODPOs and the MODLO with a copy of the civilian personnel position control register.

2.2.2. The local Manpower Office (MO) certifies to the utilization of manpower authorizations and ensures the proper organizational placement of the position, and that the duties described in position descriptions are consistent with the intent and requirements of the Air Force specialty code (AFSC). If there is doubt as to the validity of the action, the request is returned to the supervisor for additional clarification/coordination with the servicing MO.

2.2.3. Operating officials are responsible for ensuring that all indirect hire positions are established and filled, unless there is a valid reason for not doing so, such as lack of funds or pending abolishment of the position.

Section 2B—Requesting Personnel Actions

2.3. Procedures. Requests for personnel action are made by using the SF 52. Supervisors are required to submit all RPA through their organizational points of contact to the CPO. The RPA process flow prescribed at **Attachment 3** will be used to ensure coordination between the MO, Financial Management and the CPO is completed before any commitment is made that leads to allocating resources. The CPO forwards the SF 52 to the servicing MODPO via MODLO and upon return establishes the necessary record for the DCPDS. No reassignment or any change in position status of an employee is made before receipt of SF 52 by the MODPO and completion of actions required by MOD regulations. Combined requests, for example, to establish and fill a position, are made using the SF 52. Office of Personnel Management (OPM) Guide to Processing Personnel Actions contains detailed instructions for completing the necessary items on the SF 52.

Section 2C—Classifying Positions

2.4. Classification System in UK. The classification of UK civilian positions is based on appropriate standards of the British Civil Service. Although the factors used in classifying and

grading positions under the UK systems are essentially the same as in the US Civil Service classification system (that is, type of work, qualifications required, difficulty and responsibility, supervision received, and supervision exercised), the grading system itself is different. The system provides for two main categories of employees: industrial and non-industrial. These two categories are comparable to the Wage Grade (blue collar) and General Schedule (white collar) categories, respectively, used for US Civil Service employees. Each of these two categories is subdivided into different classes, each having a series of grades or levels of pay. For example, the non-industrial staff category is divided up into four broad-banded groups from group B to group E. Industrial employees are graded according to skill level ranging from unskilled through semiskilled up to the skilled or craft grades. It is important for all US military and civilian supervisors to keep in mind that MOD employees working with the US military organizations are graded according to the British Civil Service system, and that the MODPO has the responsibility for furnishing notification of position grading to operating officials concerned. Supervisors must also realize that under UK promotion or advancement regulations, reclassification upward of a filled position will not ensure promotion or advancement of the incumbent (see **Chapter 5**, **Section 5E**).

2.5. Establishing and Classifying Positions.

2.5.1. **Position Descriptions.** Position descriptions for MOD positions are prepared using AF Form 1378, *Civilian Personnel Position Description (PD)* or AF Form 1003*, Air Force Core Personnel Document (CD).* The AF Form 1378 (PD) and the AF Form 1003 (CD) should state in clear terms the principle duties, responsibilities, and supervisory relationship to provide information necessary for its proper classification; it may include a general requirement such as other duties appropriate to the MOD grade. To complete position title, insert the US title from the OPM occupational standards or clear alternative role title. In no circumstances is the British grade to be used as a position title. The position classifier completes the information for Grade, classified by, and date classified. PDs for positions identified as emergency-essential will so indicate and specify the need to wear protective equipment and the requirements for availability and participation in exercises, evaluations, training, and crisis situations, including wartime and performance of duties in either normally assigned or augmentee positions. The position requires the wearing of Chemical Warfare Defense Ensemble (CWDE) during exercises, training, crisis situations, transition to war, and war (see **paragraph 2.10.3** for medical requirements).

2.5.2. **Procedure.** In case a new position must be established or the classification of an existing one requires review, the supervisor prepares an individual PD or CD as required according to **paragraph 2.5.1** for attachment to the SF 52. In either case of establishing a new position or reviewing a position, submit the PD and organizational chart with a SF 52 to the servicing CPO with proper MO coordination.

2.5.2.1. The supervisor must ensure that a valid manpower authorization exists prior to submitting the request to the CPO. No classification review request is processed by MODLO until the CPO validates the request.

2.5.2.2. Positions coded "DMCU" on the UMD represent unfunded Indirect Hire requirements; upon verification of available funding by FM and with CPO approval, MO will submit an ACR to change grade from "DMCU" (unfunded) to "DMC" (funded).

2.5.3. Any actions not complying with the above will be returned by the CPO to the supervisor. Upon completion of the classification, MODLO distributes one copy to the supervisor and one copy to CPO.

2.6. Maintenance of Classification.

2.6.1. Supervisors maintain current copies of individual PDs for all non-US citizen positions they supervise.

2.6.2. The supervisor must initiate a request for review of classification when changes occur in the duties and responsibilities of a position to the extent that the present PD or CD no longer reflects the position requirements appropriately. In all cases, the procedure in **paragraph 2.5.2** must be observed. Classification reviews may also be initiated by MOD to include when a position has not been reviewed for a period of 5 years.

Section 2D—Recruitment and Selection Procedures

2.7. Recruitment. The RAF HQ Air Command Civilian Personnel Management Branch and the local MODPO are responsible for accomplishing all recruitment actions.

2.7.1. Priority placement considerations will apply for suitably qualified personnel who are surplus to requirements (redundant) at base level, or have strong compassionate grounds. In the event that no such personnel are available, consideration is given to filling the position by lateral move, promotion, or advancement of an on-base employee. Consideration is also given to the transfer-in of an MOD employee from another base (which may attract relocation costs) or if these are not possible, external recruitment action will be effected. The only applicants who can be accepted are those who satisfy the UK Civil Service Commission‘s criteria for appointment to permanent pension-able positions in the UK Civil Service.

2.7.2. In the non-industrial field, minimum educational, technical qualifications, and competencies are prescribed. Each applicant is personally interviewed and references from previous employers obtained. Pre-employment inquiries are accomplished and, when appropriate, medical examinations are made (see **paragraphs 2.9** and **2.10**). The applicant must meet all special qualifications of the job, including those established by the US Air Force activity. Supervisors will include any special qualifications as a remark on the requesting SF 52. The MODPO advises supervisors if difficulties arise in recruitment. Supervisors monitor the filling of positions and are to consider appropriate alternative courses of action should delay in filling the positions are experienced.

2.8. Selection. Whenever possible the supervisor is allowed to select from among eligible applicants available to fill the position, subject to the overriding requirement to place redundant employees (see **paragraph 2.7**).

2.8.1. For industrial grade positions, the supervisor, assisted by the MODPO, is able to conduct face-to-face interviews with eligible applicants.

2.8.2. For non-industrial grade positions, applicants who are permanent UK civil servants, already assigned to positions with the MOD or other UK Government organizations, will be made available for face-to-face referral interviews.

2.8.3. Non-industrial grade employees who are assigned to US Forces indirect hire positions and have passed a promotion or advancement review will be placed in the next suitable vacant

position. For non-mobile grades, this can only be in the local area in which they are serving. In these circumstances, the supervisor is allowed a choice if more than one such candidate is available.

2.8.4. When external recruitment is necessary to fill non-industrial grade positions, the US Forces is represented on the selection board. Usually, the representative is from the CPO for bulk schemes and from line management for specific posts, but in any case there will be a representative of senior noncommissioned officer, commissioned officer, or equivalent civilian status. This representative advises on the requirements of the US Forces and actively participates in the selection process. For the bulk schemes, appropriate documents are subsequently made available to supervisors to assist them in making a selection from among the successful candidates; however, although supervisors may be able to select from among successful candidates, they are be able to reject all candidates and request another board be held.

2.8.5. Where supervisors are able to interview applicants, they will notify the MODPO of the results of the interview by completing DD Form 359*, Referral for Consideration*. The DD Form 359 is then returned to the MODPO under sealed cover. The supervisor is not to inform the applicant of the outcome of the interview. In the event of non-selection, the supervisor provides the reasons to the MODPO and records the reasons in detail on DD Form 359. Reasons for non-selection must not contravene equal opportunity legislation.

2.9. Pre-Employment Inquiries. Applicants are not appointed to positions with the US Forces until such time as the MODPO or RAF HQ Air Command gives authority for appointment. The MODPO initiates pre-employment inquiries when applicants are considered qualified for position vacancies. These inquiries may not have been completed on the day of selection or delays may also be caused by a requirement to undergo pre-employment medical examination. Security clearance requirements, particularly for non-industrial staff, may also add to the delay.

2.10. Medical Examinations. MOD regulations do not require pre-employment medical examination of all applicants; this may be necessary, however, for some positions, and also in those cases where a medical history is disclosed during pre-employment processing. Only in rare instances is a post-employment examination conducted. If an MOD civilian is considered medically or physically unfit to perform the job, or if an applicant refuses to undergo a medical examination required by USAF directives, the facts are to be reported immediately to the MODPO.

2.10.1. The MODPO ensures that the appropriate MOD regulations are observed before the engagement of an UK civilian and, where required by MOD regulations, that any subsequent special medical examinations are carried out.

2.10.2. Pre- and post-employment medical examinations are required to comply with MOD and USAF directives (for example, in the case of firefighters). These medical examinations are arranged and conducted at Air Force expense according to AFM 41-210, *Tricare Operations and Patients Administration*, and performed by the USAF medical authorities or other local sources. During the selection process, the applicants must consent to undergo initial and periodic examinations where this is required.

2.10.3. MOD civilian personnel assigned to positions with a CWDE requirement are given a medical examination to determine their ability to perform assigned duties wearing such protective clothing. The US Air Force provides such medical examinations.

2.11. Designation of Emergency-Essential Positions. Commanders determine which positions are designated as emergency-essential. Such designation and the authority will be included in a statement on the official description for each position so designated. DD Form 2365, *DoD Civilian Employee Overseas, Emergency-Essential Position Agreement*, is completed, and an entry is also made in the pertinent Supervisor's Employee Brief-971, indicating the incumbent has been advised the position has been so designated and that appropriate orientation has been given. The supervisors of the positions advise the MODPO of positions so designated. Should a national emergency be proclaimed in the UK, employees may be subject to call or recall to the British Forces. The MOD has advised that it will cooperate to the fullest extent possible in attempting to defer the call-up of employees considered essential to the US Forces mission and will request a waiver of call-up when necessary.

2.12. Designation of Sensitive Positions.

2.12.1. Unless specifically exempted, non-US citizens will not be hired or assigned to positions involving access to classified information or unescorted entry into restricted areas. Procedures for, and prohibitions against, the assignment of non-US citizens to sensitive duties are outlined in DoDMAN 5200.02_AFMAN16-1405, *Air Force Personnel Security Program*.

2.12.2. Procedures for completion of AF Form 1378 are noted in the above-mentioned regulation. An approved current AF Form 1378 for each sensitive position is retained with the supervisor's file per Supervisor's Employee Brief-971. When a change in sensitivity occurs or when action is requested to establish, change, or fill a sensitive position, the following information must be included on the SF 52:

2.12.2.1. Subparagraph of DOD 5200.2-R under which designation is made. (Insert under Item 3 of SF 52.)

2.12.2.2. Name and title of designation official and the date of designation. (Insert under Item I of SF 52.)

2.12.2.3. If applicable, the degree of classified material or description of restricted areas to which access is required. (Insert under Item I of SF 52.)

2.13. Release of Employees for Reassignment between US Forces Positions. An employee who is properly referred and selected for another US Forces position is not prevented from taking that position. Supervisors are to release an employee promptly to the other position; normally within 30 working days for grade-managed positions and 8 weeks for job opportunity bulletin advertised positions after receiving notice of the employee‘s selection.

Chapter 3

WORKING CONDITIONS

Section 3A—Work Hours

3.1. Introduction. Supervisors of UK employees, in the interest of getting their work accomplished in an effective and prompt manner, should be vitally concerned with the work conditions of their employees. This interest takes on increased importance in an overseas area where conditions of employment may differ from those applicable in the US. Information on certain aspects of work conditions for UK employees, including employee benefits and services, is provided in this chapter.

3.2. Tours of Duty.

3.2.1. **Standard Tours of Duty.** Installation commanders will make local arrangements in coordination with the MODPO and the Whitley Committees (see **Section 3C**), where in existence, to establish installation weekly tours of duty. These tours of duty will prescribe daily starting and closing times for UK employees to comply with mandatory number of hours in the workweek, as defined by category in **paragraph 3.3** Tours of duty, which involves regularly scheduled overtime, requires prior approval of the organization commander.

3.2.2. **Nonstandard Tours of Duty.** Exceptions to standard tours exist for personnel filling positions requiring shift work, weekend, or holiday work on a regularly recurring basis and those positions designated as emergency-essential.

3.3. Standard Workweek Hours. The following standard hours in a workweek are prescribed for UK civilian employees:

3.3.1. **Non-Industrial Staff.** Staff working outside the London Area have a workweek of 42 hours gross, Monday through Friday, which includes 1 hour for a midday meal. Those staff individuals working within the London area normally have a workweek of 41 hours gross, Monday through Friday.

3.3.2. **Industrial Employees.** Most industrial (blue collar employees) have a normal workweek of 39 hours net spread over 5 days, Monday through Friday, which does not include a meal break, but on an annual basis work 37 hours net. Details of this shorter working week agreement are at **Attachment 2**.

3.4. Nonstandard Workweek Hours. For personnel filling positions identified in **paragraph 3.2.2**, the nonstandard weekly hours will be established prior to filling the positions. Total weekly hours exceeding the conditioned hours are compensated according to normal procedures as outlined in **Chapter 4**, **Section 4C**. Employees filling emergency-essential positions are subject to a normal workweek, which may be standard or nonstandard, and an additional nonstandard workweek for purposes of training, evaluation, exercises, etc.

3.5. Meal Breaks. Non-industrial personnel whose conditioned hours are expressed as gross are entitled to a midday meal break of 1 hour in duration, which is included in their conditioned hours totals. Industrial employees are entitled to a lunch break of normally not less than 30 minutes, which is not included in their conditioned hours. It is also customary for non-industrial staff to take morning and afternoon tea at their places of work. A tea break may also be granted only when

personnel are required to work overtime. For industrials, one paid tea break per day is authorized and is normally taken during the morning period or the first period on a swing or night shift. In exceptional circumstances, management may authorize a second break, e.g., where a safety factor is involved. Personnel working extended daily hours or on additional days in the workweek or recalled to duty, may be eligible for paid or unpaid time off for the purpose of taking meals or refreshments. The circumstances should be discussed with the MODPO and entitlements established.

3.6. Flexibility of Work Hours. Subject to the need for proper execution of the work and control of hours worked, the daily work hours of non-industrial staff and industrial employees may be varied either collectively or individually to suit the needs of both management and staff. The length of the workweek may similarly be varied provided the normal number of conditioned hours within a period acceptable to management is worked. Prior to introduction of flexible work hours, on other than an individual basis, the agreement of the local Whitley Committee must be obtained. If a Whitley Committee does not exist at the installation, the approval of the US Air Force Commander and RAF Commander is necessary.

3.7. MODPO Responsibilities. MODPO representatives advise supervisors of the conditioned weekly hours of personnel assigned. This includes actual duty hours for both the normal tour for that position and, where necessary, the special tour for emergency-essential positions, to include guidance on authorized meal breaks and rest periods for both normal tours and periods of extended work hours.

Section 3B—Uniforms and Protective Clothing

3.8. Coverage. Certain categories of UK civilian employees are entitled under MOD regulation to free issue of specified items of clothing depending upon their occupations. For example, firefighters and constabulary are entitled to uniforms; other employees may be entitled to protective clothing such as gloves, boots, raincoats, aprons, and the like. A listing of eligible categories of positions and specific items of clothing, however, is too voluminous to be included in this instruction. Detailed information on the approved categories, items if issue, etc., can be obtained from the MODPO representative.

3.9. Rules. The MOD has full responsibility for the procurement, issue, and accountability of all clothing issued under MOD regulations to UK civilians on behalf of the US Air Force. The US Air Force reimburses the MOD for all clothing furnished to UK employees or any cash allowance paid instead of furnished clothing, and for MOD furnished clothing maintenance services. Uniforms or items of clothing provided by the US Air Force to comply with US requirements are excluded from these rules.

Section 3C—Pecuniary Liability

3.10. Financial Responsibility. As a result of disciplinary investigation, UK civilian employees may be found to be financially responsible for loss, damage, or destruction of US Government property or cash entrusted to them. The specific acts of commission or omission by the employee resulting in the loss, damage, or destruction of US Government property or cash must be shown through investigation by USAF officials and substantiated by the MOD investigation officer. The MOD determines the appropriate payroll deduction or disciplinary action according to its rules and criteria.

3.11. Damage to Government-Owned Vehicles (GOV). Special rules apply to drivers of GOVs and consult with the servicing MODPO in all instances for guidance on what action may be required.

3.12. Procedures for Establishing Claim against Employee.

3.12.1. In all cases which involve UK civilian employees in the loss, damage, or destruction of US Government property or cash, a written report of the incident, including a brief statement of the circumstances involved, must be sent by the supervisor to the servicing MODPO within 7 days of the occurrence. The report contains a statement that a copy of the investigation and convening authorities' determination for a finding of pecuniary liability will be furnished upon completion of the Air Force investigation. Failure to forward the preliminary report within the 7-day period following the incident may prejudice any recoupment or disciplinary action, which may be taken against the employee.

3.12.2. All incidents will be investigated and reports accomplished and processed according to applicable Air Force directives and DODR 7000-14, *Department of Defense Financial Management Regulations (FMRs),* Volume 4, *Accounting Policy and Procedures*). In addition the following applies:

3.12.2.1. If an approved report of investigation (report of survey or other) relieves a UK employee of pecuniary liability, the MODPO will be notified accordingly.

3.12.2.2. If such a report holds a UK employee pecuniary liable, a copy of it will be sent to the RAF Commander with a request that appropriate action be taken to effect collection. The RAF Commander will initiate an investigation and furnish the base (or intermediate command) a report of the investigation, including a statement of collection action or disciplinary action taken under applicable MOD directives. If such report states that complete or partial recoupment of the loss will not be accomplished, the base (or intermediate command) will forward the RAF 3.12.2.3. Commander's report, together with its own finalized report, through command channels to the Air Force Accounting and Finance Center for final action.

Section 3D—Employee Service and Benefits

3.13. Need for Employee Services. Under the agreement, the US Air Force provides the UK civilian personnel certain services, facilities, and benefits, several of which are directly related to the conditions under which they work. These services contribute to effective performance, help in attracting and retaining the best employees available, and have a real bearing on employee and management relations and morale. Employee services should be developed in relation to the needs of employees considering the availability of community facilities and the location of the installation.

3.14. Types of Services.

3.14.1. Facilities for a hot midday meal must be provided. Where available, the use of USAF dining halls may be authorized for use by MOD employees.

3.14.2. **First Aid.** First aid type treatment for all injuries or illnesses occurring on the job is normally provided through the USAFE base medical facilities, at no cost to the employee, or

by employees using emergency first aid kits located in workshops and offices. Responsibility for providing these kits rests with the US Forces.

3.14.3. **Transportation.** Each employee is required to make private arrangements to travel from his or her home to work. Exceptionally, personnel required to make extra journeys to and from work may qualify for payment of travel allowances based on use of public transport or reimbursement of taxicab fares.

3.14.4. **Rest Periods.** Information on meal breaks is included in **paragraph 3.5**

3.14.5. **Employee Welfare.** MOD Welfare Officers officials make periodic visits to bases to counsel employees, assist them in resolving personal problems, and check on work conditions. Employees are entitled to see a Welfare Officer at any time and must be permitted to do so.

3.14.6. **Sanitary Facilities.** Installations will provide adequate sanitary facilities for their employees.

3.14.7. **Information Services.** Bulletin boards, located at strategic points, should be provided for the posting of official and other material for the information and instruction of employees. Information is available by a variety of means such as publications and electronic media. Supervisors should urge their employees to read this material periodically to keep informed. MOD publications containing news items and other information of concern or interest to employees, and which may from time to time call for action on the part of employees, are prepared and issued by the local MODPO and RAF Commander. Copies are made available to employees through their organization of assignment. Supervisors are to ensure that such publications are brought to the notice of all employees upon receipt. In addition, items of general interest may be found in base bulletins. Information directed to supervisors of MOD employees may be originated by the CPO and inserted in the base bulletin or issued direct to such supervisors.

3.14.8. **Health and Safety.** The health and safety of MOD personnel will be dealt with in accordance with the “Memorandum of Agreement between the United States Force, MOD and the UK Health and Safety Executive, Concerning the Health and Safety at Work Act 1974”, dated July 2011. MOD employees embedded in the US chain of command will be managed under the applicable US Occupational Safety and Health Program (which will be at least equivalent to the substantive standards provided for in the UK Health and Safety at Work Act 1974.) Safety issues should be addressed by Supervisors, Unit Safety representatives and Wing Safety in sequence.

Chapter 4

LEAVE AND PAY ADMINISTRATION

Section 4A—Leave

4.1. Introduction. Supervisors are urged to study the material in this chapter carefully to assure compliance with British Civil Service rules governing leave and pay matters. Since coverage of this material cannot be all-inclusive, supervisors may obtain answers to specific questions from their MODPO representative.

4.2. Annual Leave.

4.2.1. **Leave Year.** The leave year for all MOD employees is 1 May to 30 April.

4.2.2. **Leave Entitlement.** Paid leave entitlements for a full year depends upon the employee‘s category and status as shown below:

4.2.2.1. Industrial employees (excluding industrial technicians and firefighters) receive 25-30 workdays per year depending on the length of service. One week paid leave is to be taken in an unbroken period. The servicing MODPO should be consulted for details of fire grades and industrial technicians.

4.2.2.2. Non-industrial staff receive a variable amount from 5 weeks (25 workdays) to 6 weeks (30 workdays), depending upon length of service. For information supervisors should contact the MODPO.

4.2.3. **Accrual of Annual Leave.** Annual leave accrues from date of appointment; advice may be obtained about an individual‘s leave entitlement from the MODPO representative. Personnel may be allowed to take their leave, in whole or in part, at any time during the leave year. In certain circumstances industrial employees and non-industrial staff who are discharged, or otherwise separated before the end of the leave year, may be required to reimburse pay issued in respect of leave taken in excess of accrued entitlement.

4.2.3.1. Leave Records. Arrangements for maintaining leave records are set locally by the MODPO.

4.2.4. **Granting of Annual Leave.** Supervisors prepare annual leave schedules for their employees early in the leave year. Early scheduling of leave gives employees the opportunity to use all annual leave which they would otherwise forfeit at the end of the leave year and to prevent absence of a majority of employees at any one time. Employees generally must make bookings for their summer holiday arrangements well in advance. Whenever possible, supervisors should allow employees a measure of selection for the periods preferred within the limits of operational requirements, giving due consideration to the fact that vacation seasons in the UK are usually observed during the months of July and August. Payment instead of leave or for unused leave is not normally permitted. An individual may carry over up to 10 days annual leave. Employees submit an application for special approval to carry over more than 10 days to the MODPO through the supervisor. In the final month of a leave year, up to 5 days can be anticipated from the forthcoming leave year. Applications to anticipate leave should be made by the employee through the supervisor to the MODPO.

4.2.5. **Minimum periods of Annual Leave.** Minimum periods of annual leave taken will be as follow:

4.2.5.1. Industrial Employees--One-Half Day. **Note:** Some employees have reserved rights to take leave by the hour.

4.2.5.2. Non-industrial Staff--One-Half Day. There is no provision for granting annual leave for less than half a day.

4.2.6. **Procedure for Obtaining Leave.** Employees requesting annual leave are required to make application to the supervisor, on MOD Form E-7, *Application for Leave*. The application must be submitted a few days in advance when only a small amount of leave is being requested; longer vacation periods must be requested sufficiently in advance and must be scheduled by mutual agreement between the employee and supervisor. The immediate supervisor who is responsible for monitoring leave and recording on attendance records must approve an employee‘s application.

4.2.7. **Cancellation.** The cancellation of requested and approved annual leave in advance may involve financial compensation to personnel in circumstances where they cannot avoid cancellation charges for travel or holiday arrangements.

4.3. Special Leave. Employees may be granted limited special leave with or without pay (depending upon circumstances) in addition to regular annual leave for paternity, bereavement, domestic hardship, and a variety of other situations noted in pertinent MOD regulations. Employees are required to make application for special leave, supported by complete documentary evidence, through their supervisors to the servicing MODPO for approval, and for transmission to RAF HQ Air Command, if necessary. The supervisors endorse all applications for special leave to the effect that they are or are not recommended.

4.4. Sick Leave and Maternity Leave.

4.4.1. **Entitlement.** The amount of sick leave or maternity leave to which an employee is entitled depends upon the regulations governing his or her employment. Details of entitlement may be obtained from the MODPO office on an individual basis.

4.4.2. **Procedures Concerning Sick Leave and Maternity Leave.**

4.4.2.1. For periods in excess of 7 days, sick leave is supported by medical evidence of incapacity certified by a qualified practitioner (that is a medical certificate). These certificates, which are required to show the nature of the incapacity, are furnished to the MODPO office. If a certificate is sent in error to an individual‘s supervisor, the supervisor forwards it immediately to the MODPO officer.

4.4.2.2. Medical practitioners are not required to issue medical certificates for an absence of 7 calendar days or less. Employees must, therefore, complete a self-certificate giving detail of the duration and nature of incapacity. This certificate must be furnished to the MODPO.

4.4.2.3. MODPO will keep supervisors informed of the status of any individual who is on prolonged absence because of sickness or injury. Supervisors should discuss cases of excessive sick leave or known or suspected abuse of the sick leave privilege with the MODPO representative, and also discuss the desirability of obtaining a report of medical fitness for continued employment or of taking other appropriate action..

4.4.2.4. Excessive Sick Leave--more than 14 calendar days in any 12 month period will be dealt with in accordance with the restore and efficiency procedures. The local MODPO can provide full details.

4.4.2.5. Medical, Optical, and Dental Examinations and Treatment. Whenever possible, personnel are expected to make arrangements for medical, optical, or dental examinations or treatment in their own time (outside scheduled work hours). Where this is impracticable, the MODPO representative, the RAF Commander, or RAF HQ Air Command, depending upon the circumstances, may grant sick leave or time off. All requests for these concessions are to be referred to the MODPO office in order to obtain the necessary approval.

4.4.2.6. Maternity Leave. In all instances, supervisors must contact MODPO for details.

Section 4B—Holidays

4.5. UK Public and Privilege Holidays. The following holidays are authorized for MOD employees located in England: make reference to **Table 4.1** and **Table 4.2**

Table 4.1. UK Public Holidays.

Good Friday	Late Summer Bank Holiday
Easter Monday	Christmas Day
Spring Bank Holiday	Boxing Day

Table 4.2. UK Privilege Holidays.

Maundy Thursday Afternoon	One Other Day
Sovereign's Birthday	

4.6. Substitution of Holidays. No change can be made in the observance of those UK holidays, which are designated to occur on a specific date. The two holidays, the Sovereign‘s Birthday and the additional privilege holiday, do not, however, have specifically fixed dates and may be scheduled by administrative action according to MOD directives. It is important that the selection of the day to be observed as a holiday should take into account the requirements of management, efficiency of the base, and wishes of the employees. Installation commanders are authorized to seek agreement under the Whitley procedure of the observance of these two holidays on two of the regular US legal holidays. The RAF Commander or MODPO provides commanders with information on the appropriate procedures to follow. The collective wishes of the industrial and non-industrial employees are normally met. Where general agreement cannot be reached, the Sovereign‘s Birthday is to be observed on the Friday before the Spring holiday, and the additional privilege holiday is to be taken on a date to be decided by the RAF Commander after consultation with the installation commander and according to MOD directives. Similar consideration applies to those days observed instead of Christmas and New Year‘s Days should British and American practices differ, for example, when these holidays fall on Saturday.

4.7. Status on US Legal Holidays. Except for industrial employees taking compensatory days, employees are required to work on those US holidays that do not coincide with a British holiday or are not covered by a substitution arrangement as discussed above. Activities schedule workloads to ensure effective utilization of UK employees on those days. Supervisors may excuse employees from duty only when compelling circumstances, not personal to employees, preclude assignment of duties on those days. Supervisors submit listing of excused employees, with explanation, to the MODPO, with a copy to the CPO, within 5 working days following the holiday. CPOs publish reminder in local daily bulletins at least 10 days prior to the holiday.

Section 4C—Overtime and Holiday Work

4.8. Work on UK Public and Privilege Holiday or Sundays.

4.8.1. **Non-Industrial Staff.** Non-industrial staff in overtime grades that work on public holidays or Sundays have the option of receiving payment at the appropriate rate. For work performed on UK privilege holidays, staff in overtime grades are normally granted time off instead, with no additional payment. If time off instead cannot be granted, no additional payment is given unless the individual exceeds the conditioned work hours. Staff in non-overtime grades will not be given additional payment in any of these circumstances, but should be granted time off instead whenever possible.

4.8.2. **Industrial Employees.** Industrial employees who work on Easter Monday, Spring holiday, Late Summer holiday, Boxing Day, and New Year‘s Day, will normally receive a full days‘ pay plus time and a half for all hours worked. Employees who work on Christmas Day or Good Friday will normally be paid double time for all hours worked, plus a full day‘s pay. For work on all other UK holidays, employees will normally receive a full day‘s pay plus the standard rate for all hours worked. As an exception to the above, employees may request and be granted compensatory time off, in which case they will receive only the full day‘s pay for the holiday. Approval for time off instead must always be obtained from MODPO before the holiday in order to prevent payment to the employee at enhanced rates for the time worked. These provisions do not apply to industrial grade fire service employees for whom a special flat rate of pay is authorized.

4.9. Overtime Rates of Pay. Since overtime rates vary considerably according to employee‘s category, only a minimum amount of information of a general nature is provided. Answers to specific questions should be obtained from the MODPO office.

4.9.1. Non-Industrial Staff. Overtime performed by most grades during the normal tour of duty (Monday through Friday) is paid only for hours beyond the established work week (41- 42 hours gross), at one and a half basic rate up to and including band D, plain time above band D. Overtime rates are payable for all work performed during the weekend, Saturday at time and a half, Sunday at double time.

4.9.2. Industrial Employees. The normal weekly hours for most industrial grades schedule cover 39 hours (net from Monday through Friday). Hours in excess of normal daily hours are paid at one and a half basic rate. All hours worked between Friday midnight and Saturday midnight are paid at one and a half basic rate, and all hours on Sunday are paid at double basic rate, even for shift workers. These provisions do not apply to industrial grade fire service employees.

4.10. Procedures. MOD employees submit requests for overtime or holiday work to the designated approving officials according to locally established procedures, which may vary by base and command. Installation commanders are required to establish with the CPO. CPOs publish these procedures as supplements to this instruction according to AFI 33-360, *Publications and Forms Management*. Use AF Form 428, *Request for Premium Pay*, for obtaining prior approval for overtime or holiday work that will performed by employees. The MOD cannot make payment for overtime without approved AF Form 428. Request must be submitted sufficiently in advance to ensure that approval is obtained before such work, except in bona fide emergency situations. Regularly scheduled overtime or Holiday work is subject to the prior approval of the organization commander, the availability of appropriate funds, and full written justification by the operating official concerned.

Section 4D—Time and Attendance Reporting

4.11. Attendance Requirements. UK civilian employees are required to comply with established tours of duty. Those who habitually fail to report for work punctually are liable to disciplinary action. Residence in a locality remote from their place of work will not be accepted as an excuse for irregularity in attendance or tardiness. Employees who are prevented by illness or other cause from reporting for work are required to notify their supervisor immediately of the reason. MOD Forms 426, *Record of Attendance*, for Non-Industrial Personnel and MOD Form 217, *Attendance Card*, for industrial employees (both forms are obtainable from MODPO) are maintained as required by the MODPO. These records are the basis for the payment of salaries and wages and it is essential that they are accurate and current at all times. Non-industrial staff are not required to conform to sign-on, sign-off procedures, but instead, activity supervisors will submit weekly occurrence reports (obtainable from MODPO) to the local MODPO representative, to certify that the attendance of the staff has been regular except as shown on the form.

4.12. Responsibilities.

4.12.1. **MODPO representatives are responsible for.**

4.12.1.1. Providing and distributing appropriate time cards and attendance sheets.

4.12.1.2. Advising supervisors of the completion of these records and the procedure for notification of absences.

4.12.1.3. Monitoring the timely submission of completed section records, resolving apparent discrepancies, and subsequent completion and submission of such data as the Pay Office (PPA [Bath] or Cheadle Hulme) may require for the computation of pay.

4.12.2. **Supervisors of Industrial Employees.**

4.12.2.1. Ensure that the register or cards are removed from the normal place of signing following the authorized time for commencing work and are not replaced until the normal closing time.

4.12.2.2. Require employees who arrive late or leave early to record in red ink under personal observation their actual time of arrival or departure.

4.12.2.3. Confirm the accuracy of times reported by employees and initial the registers or cards daily.

4.12.2.4. Ensure that AF Forms 428 are completed and submitted to the MODPO in a timely manner.

4.12.2.5. Ensure leave records are kept up-to-date.

4.12.3. **Supervisors of Non-Industrial Staff.**

4.12.3.1. Ensure AF Forms 428 are completed and submitted to the MODPO in a timely manner.

4.12.3.2. Ensure leave records are kept up-to-date.

4.12.3.3. Identification, on the weekly attendance report, of all deviations from conditioned hours of work each day by use of the following codes:

Table 4.3. Leave Codes and Definition.

Leave Code	Code Explained	Definition
AL	**Annual Leave**	AL is used to cover periods of absence for vacation and personal business.
SPL	**Special Paid Leave**	SPL is used to cover periods of absence such as marriage, bereavement, or domestic hardship.
SUL	**Special Unpaid Leave**	SUL is used to cover periods of absence similar to SPL. Supervisors must contact their MODPO representative when they receive requests for special leave for determination whether such leave will be paid or unpaid.
MC or DC	**Certified Sick Leave**	MC or DC is used to cover periods of absence due to illness, which is supported by a medical certificate from a qualified medical practitioner (see **paragraph 4.4.2.2.**).
SC	**Self-Certified Sick Leave**	SC is used to cover periods of absence up to 7 calendar days due to illness not supported by a medical certificate from a qualified medical practitioner.
AE	**Administrative Excuse**	AE issued to cover authorized periods of paid absence on US legal holidays not coinciding with a UK public or privilege holiday (see **paragraph 4.7.**).
OT	**Casual Overtime**	OT is used to report not regularly scheduled
A	**Absent**	Reason unknown.

4.12.4. If an absence is for the minimum annual leave period of a half-day only a.m. or p.m., as appropriate, is to be inserted. For casual overtime the exact overtime worked, for example, 1700 to 1930 is to be inserted. An attendance report must be completed and submitted even if there are no absences or casual overtime to be reported. All casual overtime reported must be accompanied by a copy of approved AF Form 428. The attendance report is not to include any

person performing regular overtime or shift work or claiming long hours of attendance on a separate and detailed record of attendance.

4.13. Submission of Attendance Records to MODPO. Supervisors responsible for maintaining time and attendance records will forward attendance records and time cards to the servicing MODPO or other designated individual to assure arrival by Monday morning following the end of the workweek, or otherwise as notified according to local arrangements.

4.14. Late Arrival of Industrial Employees. Industrial (blue collar) employees who arrive at their place of duty within 1 hour of the normal time for beginning work will be allowed to begin work. If they arrive more than 1 hour late, they may only be permitted to start work on that day at the discretion of their supervisor unless the late arrival was caused by circumstances outside their control (for example, breakdown of transportation, inclement weather, etc.).

Section 4E—Temporary Duty (TDY) Travel

4.15. Conditions Governing TDY. TDY travel must be approved in advance and US Air Force travel authorization must be issued authorizing the travel. These employees perform duty travel under MOD conditions of service, and their entitlement to pay and travel allowances is governed by regulations of that Ministry.

4.15.1. The MOD makes payment directly to the traveler for all authorized travel expenses incurred. The only payment incident to travel performed by indirect hire employees who may be made direct from US Air Force funds is the cost of transportation when procured by a US government transportation request. No payment may be made from US Air Force funds directly to the traveler.

4.15.2. As indicated in **paragraph 1.3** the USAF reimburses the MOD for all authorized travel expenses incurred by indirect hire employees. The MOD issues claims for reimbursement of these travel expenses monthly to the appropriate USAF organization responsible for funding the TDY travel costs incurred. Local travel funds must therefore be obligated at the time the travel authorization is issued. The obligations so recorded are liquidated when the USAF pays the MOD claim for reimbursements for travel expenses incurred.

4.15.3. The USAF official authorizing temporary duty travel is required to observe the normal precautions of ensuring the genuine necessity for such travel and the use of the most economic means of transportation, taking all the circumstances into account.

4.16. Travel Within the UK.

4.16.1. The organization to which the individual is assigned is responsible for the preparation and distribution of DD Form 1610, Request and Authorization for TDY Travel of DOD Personnel, with the back of order overprinted as shown in USAFE-AFAFRICA Form 197, Temporary Duty Back for Non-US Citizens (UK). Identify the appropriate items on the back of order in Block 16, Remarks, of DD Form 1610. Requesting organizations must comply with the provision of AFI 65-103, Temporary Duty Orders.

4.16.2. The central base administration completes and reproduces DD Form 1610 in sufficient copies to provide normal distribution to the traveler, three copies to the Accounting and Finance Officer, two copies to the requesting organization, and two copies to the MODPO.

4.17. Special Conditions Governing Travel Outside the UK.

4.17.1. All travel to areas outside the UK requires prior notification be given to the MODPO. This action is necessary in order to allow sufficient time to provide advance of pay and allowance, to brief the employee concerned, and if travel is to the US, to provide letters of identification. Failure to provide adequate notification may result in a cash advance to the employee being restricted or not available. In the case of travel to the United States, approval may be withheld, and advance notification is to be given to the MODPO by supervisors at least 4 weeks before the desired departure date for travel to the US and 3 weeks for travel to other areas. The MODPO will be responsible for forwarding the request to the MODLO.

4.17.2. The MODLO accountant will ensure that cash advances required by the traveler are provided, within entitlement, for the period of TDY.

4.17.3. The traveler will be responsible for the possession of a valid passport and any necessary visas and immunization records in connection with the period of TDY.

4.17.4. If travel is to the US, the traveler is to be in possession of an MOD letter of identification to prevent any possible difficulties in regard to payment of medical expenses should urgent medical treatment be required. The letter will be issued in duplicate through the MODPO at the time authority to travel is given. The original copy is to be retained by the traveler and on completion of the TDY returned to the MODPO for cancellation. The traveler should be instructed not to carry the letter of identification in his passport.

4.18. Processing Requests for Travel Outside the UK. In addition to the procedures for requesting, justifying, and authorizing travel outlined in **paragraph 4.14**, the following procedures apply:

4.18.1. The CPO serves as the control point for employees outside the UK. Following notification of the requirement, the CPO coordinates with the MODPO and MODLO as necessary, requests the port call, obtains the air movement designator, reporting points and times, and briefs the employee on the travel arrangements.

4.18.2. Since the DD Form 1610 completed for travel contains a statement that travel outside the UK has been authorized, it is most important that notification is completed and approval obtained, where appropriate, before the orders are issued to the employee.

4.19. Supervisor's Counter-Signature on Employee's Travel Claim. Upon completion of TDY travel, the employee submits the travel claim on MOD Form 305, *Travel and Subsistence Claim (Civilians),* (obtainable from MODPO or MODLO), prepared according to MOD directives. Following review by the US Air Force-designated supervisor that the travel was performed according to the travel authorization and that the claim is in order, the form is ready for verification. A travel claim verification sheet, obtainable from MODPO, should be signed by GS-11, step 3, or above and be attached to the MOD Form 305. Obtain guidance on MOD travel and subsistence from the MODLO.

Chapter 5

EMPLOYEE MANAGEMENT RELATIONS

Section 5A—Discipline

5.1. Introduction. The various facets of the supervisor‘s job, which affect relationships with employees, have been included in this chapter. These encompass the rules, which govern the handling of discipline and complaints, evaluation of performance, promotions, and recognition.

5.2. Purpose of Discipline. The purpose of disciplinary procedures is to encourage good behavior and correct offenders. Discipline is a complex area and subject to UK employment laws. All cases must be dealt with by the MODPOs.

Section 5B—Complaint Procedures

5.3. Basic Policy. USAF philosophy and practices on maintaining good employee-management relations are just as applicable in handling complaints of UK employees as they are in resolving dissatisfactions of our US citizen personnel. Under this policy UK employees will be free from restraint, discrimination, or reprisals in making complaints or filing grievances.

5.4. Procedures. Employees should be encouraged to iron out job-related complaints through frank discussion with their supervisor since most problems can be resolved at the worker and supervisor level. However, the progressively more formal steps described below may be taken if any dissatisfaction still remains:

5.4.1. If employees are dissatisfied with the solution reached after initially presenting an oral complaint to their immediate supervisor, they may present the complaint either orally or in writing to the official in charge of the section.

5.4.2. If still dissatisfied, employees may forward their complaints in writing to the RAF Commander through their supervisor.

5.4.3. Should RAF Commanders not be able to resolve a complaint to the employee‘s satisfaction, the commanders will submit a full report on the complaint to RAF HQ Air Command. If the complaint involves a US supervisor or employee, the complaint or grievance will be resolved in accordance with the MOD/U.S. Forces Joint Grievance Policy found at **Attachment 5**.

5.5. Time Limits. Complaints capable of resolution at local level are investigated and a decision given the employee within 10 workdays after submission to each supervisory or higher level of appeal. RAF HQ Air Command will give a decision on complaints, which cannot be resolved at a local level, as soon as practicable. If the complaint is made in writing, the decision is given in writing with information on further appeal channels if the decision is not acceptable to the employee.

Section 5C—Whitley Committees

5.6. Background. The Whitley Committee in the British Civil Service originated in 1919 following a Parliamentary study, chaired by the Rt. Hon. J. H. Whitley, M. P.,(thus its name), to improve management and labor relationships in the UK through consultative methods. Since then,

Whitley Committees have been established on the local, departmental, and nationwide levels, the latter known as the Civil Service National Whitley Council.

5.7. Objectives. Whitley Committees provide a recognized formal means for management and employees to consult on various aspects of employment. Through such consultation, our UK employees are given a wide interest in, and greater responsibility for, the conditions under which their work is performed. The committee provides a means to assure that regulations contained in collective agreements made on behalf of employees are placed into effect. Further, the meetings of the Whitley Committees, which are generally held once every 3 months or more often, if the occasion demands, permit discussions between management officials and employees to reduce friction and misunderstanding between the two groups. Thus, the results of the Whitley Committees are considerable in assuring better employee management relations in the UK.

5.8. Composition. Whitley Committees are composed of representatives from both management and the UK employee work force:

5.8.1. The official (management) side consists of representatives from the MODPO, the RAF Commander of the installation (who normally acts as chair), and a senior staff representative of the US Air Force in observer status only.

5.8.2. The Trade Union (employee) side consists of elected employee representatives, each of whom must be a member of a staff association or a trade union. The employee side appoints a vice chair.

5.9. US Force Recognition. The official attitude of US Force management officials as well as the day-to-day working cooperation and interest of supervisors of UK employees are important factors involved in Whitley Committee functions and the relationship with employee representation groups.

5.9.1. At bases where the Whitley Committees are established, US Force commanders give their fullest cooperation in providing a suitable meeting place and participating in the operation of the committee through designation of a senior staff official as US Force observer on the management side of the committee.

5.9.2. The right of all UK civilian employees to belong to staff associations or trade unions will be recognized, and in so belonging will be free from any direct or implied coercion, discrimination, or reprisal.

5.9.3. There is a legal obligation for MOD to consult with TUs on any matters effecting employment. It is imperative that supervisors keep the MODPO informed of all potential changes.

5.9.4. The MOD conducts all oral or written negotiations with staff associations and trade unions on any matters pertaining to MOD civilians. The US Force does not recognize Trades Unions and will not consult directly with them at any time.

Section 5D—Performance Evaluation

5.10. Value of Performance Evaluation. A continuous evaluation of work performance is an important supervisory responsibility since this is an essential step in assuring an efficient work force. Performance evaluation is of real interest to employees because the overall assessment mark determines the pay level for the following year. This evaluation is a major factor in determining

whether they will be retained in their jobs. It also becomes a permanent part of their official records and could reflect on their possibilities for promotion or advancement and future careers in the MOD.

5.11. Performance Requirements. Employees who know what work they are to do and how well they are to do it will usually be more successful in accomplishing it in a highly satisfactory manner. Therefore, employees must understand and, hopefully, agree to their objectives on their Performance Appraisal Review (PAR) at the beginning of the reporting year. It is also important to give feedback on how they are performing by frequent discussions about their work and how it compares with what is expected from them on the PAR. Objective comments and constructive criticism will greatly help employees to do their jobs in a satisfactory manner.

5.12. Probationary (Trial) Period. Employees who are working for the British Civil Service must serve a probationary period of 12 months. This period may be extended if the supervisor decides that an employee has the potential to do the job satisfactorily but deserves more time to demonstrate ability. Conversely, if the supervisor considers that a new employee is totally unsuited to the job after completion of on-the-job training and the normal process of encouragement and warnings proved useless, the supervisor forwards a recommendation in writing to the MODPO. Failure to initiate action to extend the probationary period or recommend removal action well in advance of the completion of the probationary period may result in the employee‘s appointment being confirmed, when such action becomes considerably more complex.

5.13. Unsatisfactory Performance. Unsatisfactory performance and unsatisfactory attendance (restoring efficiency) should never be condoned, and action should always be initiated to secure an improvement in an individual‘s performance or attendance so that it reaches a satisfactory level. Action should not be delayed unduly and should never be delayed until the annual staff report is due. In all instances guidance should be sought from the MODPO. Unsatisfactory performance and attendance are dealt with under the MOD restoring efficiency program

5.14. Performance and Development Report (PDR). Supervisors of non-industrial employees are requested to submit their evaluation using the MOD Form 1720, *Performance and Development Report (PDR).* This report is for the use of MOD and is retained in the employee‘s file. The PDR form and guidance notes are obtainable from the MODPO or the MODPO Bulletin Boards. Each employee is notified of the suspense date for the submission. It is important that the instructions are followed carefully in preparing of the report. Supervisors will be given detailed training on PDR completion. PDRs should at all times be fair and factual, and should never hesitate to draw attention to any significant weaknesses in performance of duties that have been previously discussed with the individual. When completed, these reports must be shown to and discussed with the employee being rated after discussion with the countersigning officer. The report is returned to the employee after the countersigning officer‘s assessment is made. Further information and advice can be obtained from the MODPO office.

Section 5E—Promotion or Advancement Policies and Procedures

5.15. Basic Principles. The MOD promotion or advancement system varies considerably from the promotion or advancement processes that govern advancement of our US citizen employees. It is important to recognize and consider several major differences discussed below between this system and that applicable to US citizen employees, to prevent misunderstandings and fruitless

attempts to seek promotion or advancement for UK civilian employees based on US Civil Service and US Air Force principles and practices.

5.15.1. MOD grades and pay bands are personal to the individual (comparable to rank in the military). In the US Civil Service, civilian grades are attached to the job held and are never personal to the individuals themselves.

5.15.2. In the MOD, a non-industrial employee is promoted or advanced only after receiving the necessary marks on the PARs and achieving the necessary competencies for the grade. In the US program, an individual generally remains in one field or one line of work and receives promotion or advancements in that specialty.

5.15.3. Individuals are seldom, if ever, promoted in MOD solely because of increase of responsibilities in current job assignment, as is frequently the case in the US Civil Service. This facet of the British system must be kept in mind by US supervisors of UK employees since this is one of the most frequently misunderstood provisions in that system.

5.15.4. Promotion or advancement in the MOD is always by open and fair competition at a promotion or advancement board. This can either be a centralized review held by a major budget area, e.g., RAF HQ Air Command or for an individual post.

5.16. Procedures on Promotion or Advancement Actions. The following provisions are applicable when filling a UK civilian position vacancy by promotion or advancement or when a filled position is upgraded.

5.16.1. The MOD promotion or advancement system policies and procedures will apply. Supervisors should consult MODPO representative on a case-by-case basis.

5.16.2. In the event of a position being upgraded, the incumbent is not necessarily promoted to the higher-grade level. The MOD, through RAF HQ Air Command and the local MODPO office, endeavor to fill vacant or upgraded positions by reassignment of surplus employees. The supervisor is given the opportunity of conducting an interview to fill the post. In the short term, the most suitable local employee may be recommended for temporary and geographical promotion or advancement.

5.16.3. Supervisors of MOD employees are not to attempt to obtain a promotion or advancement for an employee through internal negotiation with other supervisors or by requesting an upgrading of a UK position solely for this purpose. In view of the special procedures on promotion or advancement in the MOD described above, considerable employee dissatisfaction can result in instances where promotion or advancements promised by supervisors cannot be affected.

Section 5F—Employee Recognition

5.17. Recognition Methods. Employees are eligible for cash awards for adopted suggestions and are encouraged to submit suggestions that will benefit US Force operations. They are also eligible for certain types of recognition discussed below. These are positive ways of recognizing and rewarding the accomplishments of UK employees and stimulating their interest in management problems. The effectiveness of these methods depends to a large extend on a fair, consistent approach on the part of supervisors in recognizing their good work.

5.18. The Air Force Suggestion Program (Airmen Powered by Innovation and Suggestion Program). A suggestion is any idea designed to speed up production; improve operations, work conditions, administrative procedures, and methods of equipment; save materials, promote health or morale, or increase safety. In short, any ideas to get the US Air Force job done better, faster, and cheaper (see AFI 38-402, *Airmen Powered by Innovation and Suggestion Program*). The major facets of this important program are discussed below:

5.18.1. **Submission and Promotion or Advancement.** Suggestions are sent to the base suggestion monitor at the installation where assigned. All suggestions are given fair and prompt evaluation by the office having primary interest and processed through an incentive awards committee. Normally, a cash award is paid for every suggestion adopted and put into effect. If a suggestion is not adopted, the suggestor is told exactly why. A suggestor‘s name is not disclosed if so desired.

5.18.2. **Cash Awards.** The amount of the cash award is based on the tangible dollar savings or intangible benefits derived from the suggestion. Awards are paid to UK personnel in sterling, through the MODLO, and are not normally subject to income tax.

5.18.3. **Participation.** The US Air Force consistently maintains an outstanding record of employee participation. Each employee is encouraged to participate actively in the suggestion program by submitting ideas on how to improve methods, procedures, work conditions, etc. Supervisors have an important added role--that of continuously working with their employees to make them aware of the program and its benefits to them and the US Air Force.

5.19. MOD Suggestion Scheme (GEMS). The purpose of this scheme is to foster cooperation of civilian personnel in the drive for efficiency and economy within the MOD organization, and MOD employees are encouraged by monetary awards to submit suggestions. Details of the scheme are contained in MOD Personnel Manuals, which are available in the MODPO, and publicity is given through the media of RAF HQ Air Command or local MODPO announcements.

5.20. Types of Awards.

5.20.1. **Honorary Awards.** See DODI1400.25V451_AFI36-1004, *Civilian Recognition Program*; and USAF-AFAFRICAI 36-131, *The USAFE Non-US Recognition Program*. This award is granted to recognize exceptionally meritorious service of major significance to the US Force in the performance of duties in a manner clearly exceptional to others.

5.20.2. **Air Force Valor Award.** This award recognizes an act of heroism, with voluntary risk of personal safety in the face of danger either on or off the job.

5.20.3. **Outstanding Civilian Service Award.** This is honorary recognition, for outstanding career service meriting recognition at time of retirement.

5.20.4. **Meritorious Civilian Service Award.** This award is granted on a highly selective basis for outstanding contribution in an exemplary manner and of major significance to the Air Force. It is not appropriate for employees about to retire.

5.20.5. **Air Force Command Valor Award.** This award recognizes unusual courage or competence in an emergency, either on or off the job, unrelated to performance of official duties.

5.20.6. **Exemplary Civilian Service Award.** This award is granted to recognize an individual or group for clearly outstanding service in the support of the command mission or goals.

5.20.7. **USAFE Medal of Merit.** This decoration is given in recognition of outstanding service, achievements, or support of the mission of the United States Air Forces in Europe.

5.20.8. **USAFE Medal of Distinction.** This decoration is granted in recognition of extraordinary service, special achievements, or significant support to the accomplishments of the United States Air Forces in Europe.

5.21. Letters of Commendation and Appreciation. Care should be exercised in the text of letters of commendation and appreciation due to their relationship to Annual Staff Reports (see **Chapter 5.14**, **Section 5D**), and contradiction between them avoided. Copies of these letters should always be forwarded to the MODPO for inclusion in the employee‘s personnel file. Supervisors are urged to contact their MODPO representative when one of their MOD employees appears to deserve such recognition (see DODI1400.25V451_AFI36-1004 and USAFE-AFAFRICAI 36-131).

5.22. Service Recognition.

5.22.1. Service with US Forces is recognized by the award of certificates of service and service emblems upon completion of the first 10 years of service and subsequently upon the completion of each 5-year period of service, or upon separation under reduction-in-force procedures regardless of length of service.

5.22.2. Retirement certificates are given to employees when they retire under the retirement provisions of the host country.

5.22.3. Preparation of certificates and arrangements for presentation is made by the CPO following notification by RAF HQ Air Command of completion of the qualifying periods of service.

5.23. MOD Special Bonus Scheme. This scheme is solely for the purpose of recognizing outstanding performance either by individuals or teams of a special project, task, exercise, or particular demanding situation. All staff is eligible to receive special bonus awards. The scheme is not intended for rewarding sustained outstanding performance. Full details of the scheme are announced quarterly and nominations are to be made on MOD Form 94*4, Special Bonus Award*, available from the local MODPO.

Chapter 6

SEPARATIONS

Section 6A—Resignations

6.1. Notice Requirements. Employees are expected to furnish written advance notice of resignation. This notice normally consists of 1 month in the case of all employees. Exceptionally a shorter period of notice may be accepted depending upon the circumstances, but in all cases supervisors are to advise whether or not a waiver of notice is recommended. The waiver will be taken into consideration by the MODPO in reaching a decision.

6.2. Procedures. An employee may give oral notice of intent to resign, but such notice should be confirmed in writing and passed by the supervisor, to the MODPO. The supervisor should endeavor to ascertain the employee‘s exact reason for resigning, especially if it appears to concern job-related conditions.

Section 6B—Involuntary Separation

6.3. Separation for Cause. Employees may be separated for cause (dismissed) for serious misconduct, which makes them unsuitable for continued employment with the MOD, or for continuing behavior demonstrating that the desired improvement is improbable. Some of the reasons for initiating such action are repeated absences without leave, notorious misconduct, acts that result in criminal proceedings against the employee, and repeated instances of insubordination.

6.3.1. **Procedures.** The procedures to be applied when a supervisor considers that an employee should be separated for cause are similar to those for disciplinary action contained in **Chapter 5**, **Section 5A**. The final decision, in all cases, as to whether the circumstances are such that dismissal is appropriate, will be made by the MOD.

6.4. Reduction-in-Force (RIF). RIF or redundancy procedures of the MOD are applicable when a reduction of civilian authorizations affects MOD civilian employees. Supervisors who have some acquaintance with US RIF procedures will appreciate similarities between the British system and the US system, especially regarding the job protection afforded a career employee over a non-career employee. It should be noted, however, that the impact of RIF involving mobile grade employees is not necessarily confined to one installation since such employees may be able to displace more junior employees at another installation. The net result of a RIF may be that the incumbent of a US Air Force position that is abolished displaces an employee at an MOD installation, and the latter employee is the one to be separated.

6.4.1. **RIF Categories.** In a RIF, there are two categories of MOD employees:

6.4.1.1. Established Civil Servants. These individuals would be considered career or permanent employees in the US system. An established civil servant may be surplus or redundant in a US Air Force organization but an employee is rarely surplus in the British Civil Service. If a suitable vacancy is not available, such a vacancy will normally be created by separation of an unestablished (temporary) employee.

6.4.1.2. Casual and Fixed Term Civil Servants. These are employees who in the US system should be called non-status employees. They do not have the permanent tenure granted to

established personnel. RIF of casual and fixed term civil servants normally operates by grades on an installation. Employees with the shortest length of service in the grade are the first to become surplus in that grade. In other words, the elimination of a position in a particular section does not necessarily involve the discard of the incumbent. If the surplus employee is senior by length of service, the employee is generally transferred to another section to displace an individual in the same grade who has less service.

6.4.2. **Official Notice of RIF.** RIF, no matter how necessary, has an impact not only on the employees adversely affected but also on the entire work force and the local community, especially if the number of spaces involved is considerable. For this reason, it is essential that appropriate authorities received the maximum possible notice of impending reduction. Maximum is defined as the employee notice period plus a maximum of 90 days lead time for the preparation of the RIF.

6.4.2.1. The civilian personnel officer, on behalf of the serviced commander, notifies RAF HQ Air Command directly in writing, of any planned reduction which impact on MOD civilian strength. This will be done at the time that approval to conduct a RIF is sought (see **paragraph 6.4.2.3**), and again when such approval is granted, RAF HQ Air Command, in turn, notifies trade unions, staff associations, and the work force. Disclosure to the news media or the work force is not to be made by US Forces commanders, operating officials, or supervisors.

6.4.2.2. When it is proposed to conduct a major RIF involving 25 or more MOD employees at one location, it is essential that the earliest possible notification be given as described in **paragraph 6.4.2**, including information in the phase-out dates of the positions involved. A copy of this notification must be given to the CPO at RAF Mildenhall. Following notification of the approval of the RIF, RAF HQ Air Command advises the MOD, trade unions, and staff association, before making any release to the news media or an announcement to the work force. RAF HQ Air Command makes the announcement as authorized by MOD. Action to implement the RIF cannot commence until this announcement is made.

6.4.2.3. Approval to conduct a RIF involving MOD employees will be sought from HQ USAFE-AFAFRICA/A1KC by the CPO. HQ USAFE-AFAFRICA/A1KC coordinated with other services components according to ECI 1406.01, *Administration of Civilian Employees in the U.S. European Command (USEUCOM) Area of Responsibility (AOR)***,** Appendix D prior to approving the RIF.

6.4.3. **Accomplishing the RIF.**

6.4.3.1. When a decrease in UK civilian authorization occurs, the US Air Force commander concerned identifies those spaces and incumbents of positions that will be eliminated. Such determinations are always the responsibility of the US Air Force as the utilizer of UK personnel.

6.4.3.2. The MODPO is notified of specific positions declared surplus through submission of SF 52, or in cases of base draw downs involving large reductions, a copy of the draw down plan. The earliest practicable notice is important due to the notice period to which MOD employees are entitled when retention at the present grade is not possible. Pay instead of notice is mandatory if the following minimum periods of notice are not observed:

6.4.3.2.1. **Industrial Employees.**

6.4.3.2.1.1. Established employees 60 years of age or under--6 months.

6.4.3.2.1.2. Established employees over 60 but under 65, with less than 10 years of service--1 year.

6.4.3.2.1.3. Established employees over 60 but under 65 with 10 or more, but less than 25 years of service--9 months.

6.4.3.2.1.4. Unestablished employees who have completed 2 years of service and who have accepted a liability to transfer--3 months. Unestablished employees who have completed less than 2 years of service--2 weeks.

6.4.3.2.2. **Non-Industrial Staff.**

6.4.3.2.2.1. All established staff under 60 years of age--6 months.

6.4.3.2.2.2. Notice to established staff age 60 and over will be extended by 6 months for those with less than 10 years of service, to a total of 12 months, and by 3 months for those with 10 to 25 years of service, to a total of 9 months. These extensions will not run beyond the 65th birthday.

6.4.3.2.2.3. Unestablished staff with 2 years, but less than 5 years of service--3 months.

6.4.3.2.2.4. Unestablished staff (monthly paid) with 4 weeks but less than 2 years of service--5 weeks.

6.4.3.2.2.5. Unestablished staff (weekly paid) with 4 weeks but less than 2 years of service--2 weeks.

6.4.3.3. The RIF will be accomplished according to any applicable US Force instructions, policies or regulations that apply and any applicable MOD regulations; it may be the case that Local National Direct Hire employees of the US Force are affected as well MOD employees, hence the need to take in to account both policies. The MODPO or RAF HQ Air Command identifies the specific employees affected by the RIF, prepares and delivers required notices; and effects the separation or reassignment actions as necessary. Supervisors of affected employees and positions are informed by the MODPO of the impact of RIF actions affecting their area. It is important that all US Air Force commanders, supervisors, and other personnel cooperate fully with representatives of the MODPO and RAF HQ Air Command in implementing a RIF.

Chapter 7

TRAINING

7.1. Introduction. In general, training UK civilian employees to meet requirements of their positions is governed by the same principles, objectives, and procedures as applied for training of US civilian and military personnel. Consequently, training for UK civilians will be given on the basis of needs and afforded the same attention as the training of US personnel. The primary responsibility rests with the supervisor who is in the best position to determine needs of employees, type of training required, and, in most cases, to provide the necessary training at the worksite. For non-industrial staff 2-day core competence training is required, as is Equal Opportunity training for industrial supervisors. Assistance in all aspects of training throughout this chapter may be obtained from the CPO or MODPO for MOD training. The CPO can also furnish special assistance in determining the appropriate training source. AFI 36-401, *Employee Training and Development*, contains guidance on the training and employee development in addition to the information in this chapter. The CPO has issued, and will continue to issue, supplementary information as an additional means of assisting supervisors and operating officials in meeting training responsibilities.

7.2. Determining and Documenting Training Needs. Some training needs are obvious or automatically generated from assignment of new employees, statutory requirements, and new types of equipment, or changes in procedures. Other training requirements are determined through observation or an analysis of skills required versus an employee‘s capabilities. The supervisor, in daily contact with employees, will encounter indicators of possible training needs such as backlogs, inability to meet deadlines, frequent errors, poor workmanship, accidents, and damage to equipment. The CPO conducts an Annual Training Survey (ATS) to assist supervisors in identifying training needs. Supervisors should advise the CPO of existing and anticipated training requirements that cannot be satisfied at the worksite.

7.3. Meeting Training Needs. Supervisors should select a training source, which provides the required development of an employee‘s skills and knowledge in the most effective and economical manner. Special attention should be given to meeting the needs through on-the-job training, Career Development Centers (CDC), US Air Force resources, other US government agencies, or MOD. Non-US or UK government courses will be used only if justified by reason of effectiveness and economy. Supervisors are reminded that the MOD offers a significant range of core competence and specialist training courses. Supervisors should note that staff is encouraged to attain professional qualifications.

7.3.1. **Job Induction.** Supervisors will provide initial orientation of the new employee to the job, fellow workers, tools and equipment, available facilities, special rules and regulations of the section, and continue through on-the-job training.

7.3.2. **On-the-Job Training (OJT).** Planned OJT is the primary means for supervisors to develop skills and knowledge of newly appointed as well as other employees to increase the level of proficiency, attain and maintain safe workmanship, cross train employees into new jobs, and meet requirements resulting from changes in methods or procedures. If it is necessary for the supervisor to select an instructor to conduct OJT or assist in it, the instructor must be familiar with teaching techniques and should preferably have completed instruction training. The supervisor should prepare an outline for all OJT requiring more than 40 hours of

instruction. The use of self-development opportunities and supplementary off-the-job courses should be considered in the preparation of these plans and incorporated, wherever possible. The training plan, (part of the employee's PAR (see **paragraph 5.14**) once prepared, should also facilitate preparation for, and conduct of, training required in the future. The outline or lesson plan should be submitted to the Training Liaison Officer (MODPO) before starting the training. This should provide for an exchange of training materials to facilitate preparation of plans for OJT and to prevent duplication of work. If the required training cannot be effectively provided at the worksite or must be supplemented by a special course, the supervisor should promptly request the CPO for assistance in locating training sources. This notification is especially important when UK employees are required to attend courses in the US, at other US Air Force or Department of Defense (DoD) facilities, or at non-US or non-UK government agencies. Attention is drawn to **Chapter 4**, **Section 4E**, and the need to notify MODPO well in advance of any requirement for an employee to proceed on TDY outside the UK.

7.3.3. **On-Base Classroom Training.** Requirements for the development of managerial skills and of capabilities in areas such as, information technology (IT) skills, military correspondence, and office procedures normally will be met at courses centrally conducted or arranged by the CPO. Representatives of the CPO will arrange for scheduling courses and employees, as required. The US Air Force civilian supervisors' course is mandatory for all first- and second-level supervisors who have not had an equivalent course and for all newly appointed supervisors within the first 6 months after their assignment. Other courses in management training will be provided as required.

7.3.4. **Off-Base Training.** External training opportunities should be considered as supplementary rather than the sole training opportunity. They will be used primarily to meet requirements that cannot be satisfied locally and to create or improve a training capability at the base. Supervisors should give priority consideration to the selection of employees qualified to absorb the instruction and to teach other personnel upon return from training. Supervisors should coordinate with the CPO in the selection and scheduling of employees for training at off base training facilities to ensure that the request is compatible with the base program and meets the regulatory requirements associated with processing and funding such training. SF 182, *Authorization, Agreement and Certification of Training,* will be used to schedule off-base training.

7.3.5. **Self-Development.** Meeting established needs as well as the desire of employees to acquire broader professional experience, knowledge, and skills can be better satisfied if supervisors motivate and guide their employees toward use of available materials or facilities for self-study. Supervisors should contact the CPO to supplement their own knowledge of technical materials and correspondence courses available in their functional areas, such as Extension Course Institute (ECI) courses, and for information concerning opportunities for self-development existing is the local area. Periodically the CPO will publish a list of educational and training organizations that provide opportunities and should incorporate these activities in the overall training plan for employees. Upon completion of extensive study to gain a professional qualification MOD employees can be nominated for a Special Bonus Scheme Award. Where possible, supervisors should incorporate self-development activities of employees within the overall training plan for their employees. The CPO can be of special assistance to supervisors and employees in making arrangements for enrollment of students.

7.3.6. **British Ministry of Defence Management Training Center (DMT).** These regional centers provide training on the competence for the grade, general background, supervisory, and other courses for MOD civilian personnel. At the beginning of the reporting year personnel identified courses that are designed to assist not only in the general conduct of day- to-day business but also in the furtherance of their careers in the MOD. Supervisors are to cooperate by releasing personnel selected for courses at the DMT. If, however, the course is scheduled at a particularly inconvenient time and the supervisor notifies the MODPO without delay, arrangements can usually be made for the individual to attend the course at a later date.

7.3.7. **Juveniles.** MOD regulations require staff less than 18 years of age to continue their general education where the necessary facilities exist or can be provided by the local education authority. Normally, they will be required to attend day classes for 1 day each week (or alternatively, 2 half days each week) during working hours. If this is not practicable because of local conditions, young people are encouraged to attend suitable evening classes, and are allowed time off during the day equivalent to the time spent at such classes plus the necessary traveling time.

7.3.8. Supervisors of occupational jobs, e.g. firefighters, that require the completion of CDCs, must organize the workload to enable the employees to undertake the course during normal work schedules.

7.4. Evaluating Training. No training activity can be truly effective unless it has been determined that it accomplished the objective for which designed. Supervisors should follow up to assure that training is applied on the job; objectives are met and evaluate the benefits obtained. An evaluation must be made for training of more than 40 hours and for all off-base training, regardless of length. The evaluation will be issued by the Employee Development Assistant for completion and return to CPO.

7.5. Recording and Reporting Training. Training records are tools designed to promote an effective training process and facilitate preparation for, and conduct of, present as well as future training. They also form a basis for assessing the value of training at the installation and ensuring that employees receive official credit. Some of these tools have been discussed above, for example, AF Form 1320, *Training Chart***,** and SF 182, *Authorization, Agreement and Certification of Training*. Supervisors will use the Supervisor's Employee Brief-971 to record training completions and knowledge and skills acquired through self-development. AF Form 1256, *Certificate of Training,* may be prepared, issued, or processed as appropriate.

SUSAN M. AIROLA-SKULLY, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachment 1

GLOSSARY OF REFERENCES AND SUPPORTING INFORMATION

References

DODR 7000-14-R, *Department of Defense Financial Management Regulations (FMRs),* Volume 4, *Accounting Policy and Procedures*, May 2019

DODI1400.25V451_AFI36-1004, *Civilian Recognition Program*, 26 April 2019

DODMAN 5200.02_AFMAN16-1405, Air Force Personnel Security Program, 1 August 2018.

DAFI 33-360, *Publications and Forms Management*, 1 December 2015

AFPD 36-1, *Appropriated Funds Civilian Management and Administration*, 18 March 2019

AFPD 34-3*, Nonappropriated Funds Personnel Management and Administration,* 13 June 2018

AFI 33-322*, Records Management and Information Governance Program*, 23 March 2020

DODI1400.25V1231, *DoD Civilian Personnel Management System: Employment of Foreign Nationals,* 5 July 2011

AFI 36-701, *Labor-Management Relations*, 14 November 2019

AFI 36-2670, *Total Force Development,* 25 June 2020

AFI 38-402, Airmen Powered by Innovation and Suggestion Program, 9 February 2018

AFI 65-103, *Temporary Duty Orders*, 15 August 2019

AFMAN 41-210, *Tricare Operations and Patients Administration,* 10 September 2019

European Command Instruction (ECI) 1406.01, *Administration of Civilian Employees in the U.S. European Command (USEUCOM) Area of Responsibility (AOR)*

USAFE-AFAFRICAI 36-131, *The USAFE Non-US Recognition Program*, 23 July 2020

Prescribed Forms

USAFE-AFAFRICA Form 197, *Temporary Duty Back for Non-US Citizens (UK)*

Adopted Forms

AF Form 428, *Request for Premium Pay*

AF Form 679, *Air Force Publication Compliance Item Waiver Request/Approval*

AF Form 847, *Recommendation for Change of Publication*

AF Form 1003, *Air Force Core Personnel Document (CD)*

AF Form 1256, *Certificate of Training*

AF Form 1320A, *Training Chart*

AF Form 1378, *Civilian Personnel Position Description (PD)*

DD Form 359, *Referral for Consideration*

DD Form 1610, *Request and Authorization for TDY Travel of DOD Personnel*

DD Form 2365, *DOD Civilian Employee Overseas Emergency--Essential Position Agreement*

MOD Form E-7, *Application for Leave*

MOD Form 217, *Attendance Card*

MOD Form 305, *Travel and Subsistence Claim (Civilians)*

MOD Form 426, *Record of Attendance*

MOD Form 944, *Special Bonus Award*

MOD Form 1720, *Performance and Development Report (PDR)*

Standard Form 52, *Request for Personnel Action*

Standard Form (SF) 182*, Authorization, Agreement and Certification of Training*

Abbreviations and Acronyms

A—Absent

AE—Administrative Excuse

AF—Air Force

AFB—Air Force Base

AFI—Air Force Instruction

AFMAN—Air Force Manual

AFPD—Air Force Policy Directive

AFRIMS—Air Force Records Information Management System

AFSC—Air Force specialty code

AL—Annual Leave

BSAO—British Staff Administration Office

BSLO—British Staff Liaison Office

CD—Core Personnel Document

CPO—Civilian Personnel Office

CWDE—Chemical Ware Defense Ensemble

DCPDS—Defense Civilian Personnel Data System

DPC—Civilian Personnel Office Division

GOV—Government-Owned Vehicle

IAW—In Accordance With

IDEA—Innovative Development through Employee Awareness Program

IMT—Information Management Tool (IMT‘s have converted to ―Forms‖)

MC or DC—Certified Sick Leave

MO—Manpower Office

MOD—Ministry of Defence

MODLO—Ministry of Defence Liaison Office

MODPO—Ministry of Defence Personnel Offices

OPM—Office of Personnel Management

OPR—Office of Primary Responsibility

OT—Casual Overtime

PAR—Performance Appraisal Review

PD—Position Description

PDR—Performance and Development Report

RAF—Royal Air Force

RDS—Records Disposition Schedule

RPA—Request for Personnel Action

SC—Self-Certified Sick Leave

SPL—Special Paid Leave

SUL—Special Unpaid Leave

TDY—Temporary Duty Travel

TU—Trade Union

UK—United Kingdom

USAFE-AFAFRICA—United States Air Forces in Europe-Air Forces Africa

Attachment 2

SAMPLE FRAMEWORK DOCUMENT--SHORTER WORKING WEEK

A2.1. The underpinning principle to this document is that ―work gets done when it needs to be done‖, and all parties agree to operate within the spirit of this principle.

A2.2. The following framework will be applied uniformly at all USAF UK units and associated DoD agencies in the UK. The local RAF Commander, in conjunction with local US Management and Industrial Trade Unions will be responsible for monitoring the Scheme and resolving any unforeseen operating problems.

A2.3. All parties agree to the following 4 principles:

A2.3.1. Staff will continue to be conditioned to 39 hours per week and work their current agreed work schedules. On the basis of notional attendance each full time employee will be credited with 2 hours compensatory time per week.

A2.3.2. Notional attendance will be 45 weeks per year and compensatory time off will be expressed in whole days, i.e. 45 x 2 hours = 90 hours which rounded down gives 11 days compensatory time per year.

A2.3.3. Whenever mission requirements permit, the compensatory days will be taken on the 7 US Holidays that do not coincide with the UK Public Holidays. The other 4 days will be taken on other ”down”, ”goal” and ”family days”. Whenever any of these days are not appropriate, alternative time off will be determined by mutual agreement and taken within 3 months. However, the compensatory time off must not disadvantage the individual.

A2.3.4. A separate record for compensatory time will be created by the local MOD Personnel Office. These records will be held by the Line Manager who will be responsible for maintaining the records and also recording the compensatory days on the attendance cards. At the end of each year the record sheets will be returned to the local MOD Personnel Office for scrutiny and audit purposes.

A2.4. The Framework Document will operate from the beginning of the first month following the completion of the signature blocks.

Figure A2.1. Signature Block of Framework Document.

Signature: ____(signed)_____	Signature: ____(signed)_____
Air Vice Marshall A. J. Burton	Mr. T. Brighton
AOA	Vice Chairman HQ STC
HQ STC	Industrial Whitley
Date: 17 May 2003	Date: 17 May 2003

Attachment 3

MINISTRY OF DEFENCE (MOD) PERSONNEL PROCESS FLOW

Figure A3.1. USAFE/A1 MOD Personnel Process Flow Memo (Page 1).

DEPARTMENT OF THE AIR FORCE
HEADQUARTERS UNITED STATES AIR FORCES IN EUROPE

15 NOV 2010

MEMORANDUM FOR 3 AF/CC
3 AF/CV
48 FW/CC
100 ARW/CC
501 CSW/CC

FROM: HQ USAFE/A1
Unit 3050 Box 25
APO AE 09094-5025

SUBJECT: Ministry of Defense (MOD) Personnel Process Flow

1. The ability to recruit and retain top-notch employees in the overseas area is paramount to the success of operations in the United Kingdom. A recent audit concerning the Ministry of Defense (MOD) positions highlighted some key process areas in which improvement must be made by Manpower, Comptroller, Personnel, and MOD to ensure we are compliant with all governing rules and regulations.

2. **Manpower**: AFI 38-204, Programming USAF Manpower, and AFI 38-201, Determining Manpower Requirements, are the governing instructions for all manpower and contract manpower equivalent actions requiring documentation on the Command's UMD. As such, manpower will ensure all MOD, Local National Direct Hires, and US positions are accounted for on the UMD.

3. **Comptroller**: Ensure commanders do not expend funds, create obligations, or any appropriations of funds in excess of the amount available in the appropriation of fund unless authorized by law. A standardized cost measurement will be in place to provide Commanders with a tool to estimate the average 'cost' of MOD positions.

4. **Civilian Personnel Office (CPO)**: Is responsible for the most efficient processes to fill validated vacancies, strategic forecasting, and personnel accountability. Supervisors are **required** to submit all Requests for Personnel Actions (RPAs) through their organizational points of contact to the CPO. The following new process flow (Atch 1) will be in effect for all future requests for personnel action:

a. Supervisors will submit an RPA using the fillable Standard Form 52 (SF52) (Atch 2) via e-mail.

b. The CPO will validate the requirement with a handwritten signature, scan the fillable SF52, and send to Manpower via e-mail (Atch 2).

c. Manpower will validate the position under the structure, hand sign, scan, and send to Finance.

Figure A3.2. USAFE/A1 MOD Personnel Process Flow Memo (Page 2).

d. Finance will validate the funds, hand sign, and scan to the CPO.

e. The CPO will verify signatures and create the RPA in DCPDS and attach the fillable SF52 with all signatures to be forwarded to the Business Support Team (BST) or Ministry of Defence Liaison Office (MODLO) as appropriate.

f. The MODLO office, once classification is complete (if appropriate), returns the electronic RPA in DCPDS to the CPO for processing to the BST office

g. The BST office, once recruitment is complete, finalizes the electronic RPA in DCPDS with pertinent information pertaining to selection and sends to the CPO for Human Resources (HR) update. Note: If the BST or MODLO office receives any RPA without the above authorizations and/or endorsements, the RPA will be returned to the organization without action.

5. **The MODLO/BST Office:** Is responsible for prompt notification to the CPO in regards to any changes to the MOD workforce. Such changes can be, but are not limited to, resignations, accessions, deaths, and retirements. To ensure joint accountability, the MOD office will update the UMD numbers to the corresponding MOD position numbers in their HR database. This product will be used by the CPO to audit against the Position Control Register (PCR) and UMD routinely to ensure accuracy between the two HR systems.

6. **Corporate Board**: An MOD Resource Management Board will convene at least bi-annually to review mission priorities and redistribute resources as necessary. Board members will include the Wing CVs, 3 AF/CC, Manpower, Personnel, Comptroller, MOD, and JA representatives (as needed).

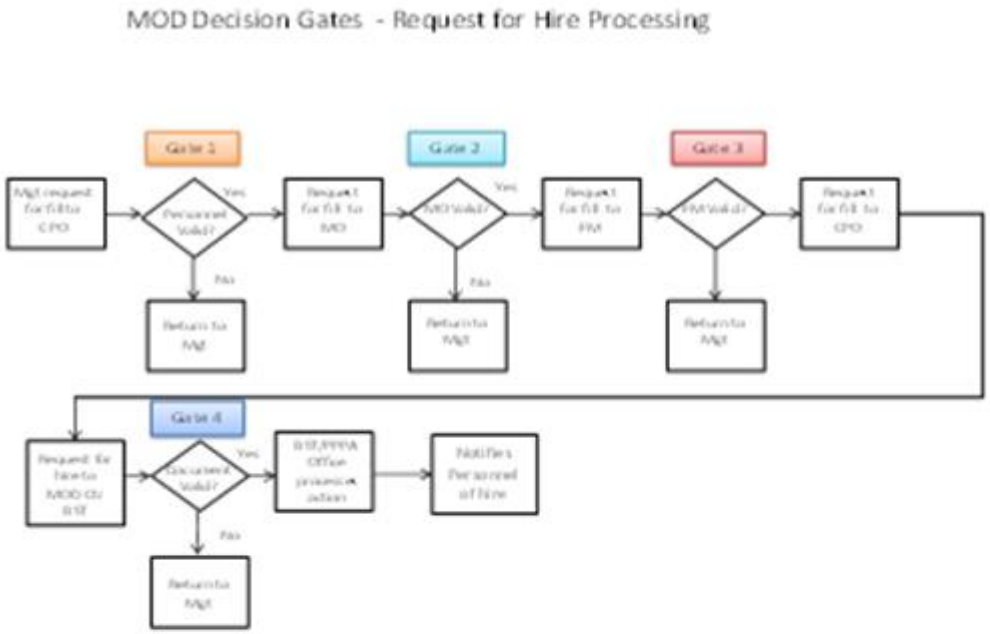
7. Any questions should be directed to the Civilian Personnel Officer, 100 FSS/FSMC, at DSN 238-2662.

Carla H. Gammon
CARLA H. GAMMON, Colonel, USAF
Director, Manpower, Personnel, and Services

Attachments:
1. RPA Process Flow, 8 Oct 10
2. Fillable SF52, 8 Oct 10
3. MOD Pay Bands by Grade, 8 Oct 10

cc:
HQ USAFE/A1K
HQ USAFE/A1M
HQ USAFE/FM
100 FSS/FSMC

Figure A3.3. MOD Decision Gate – Request for Hire Processing.



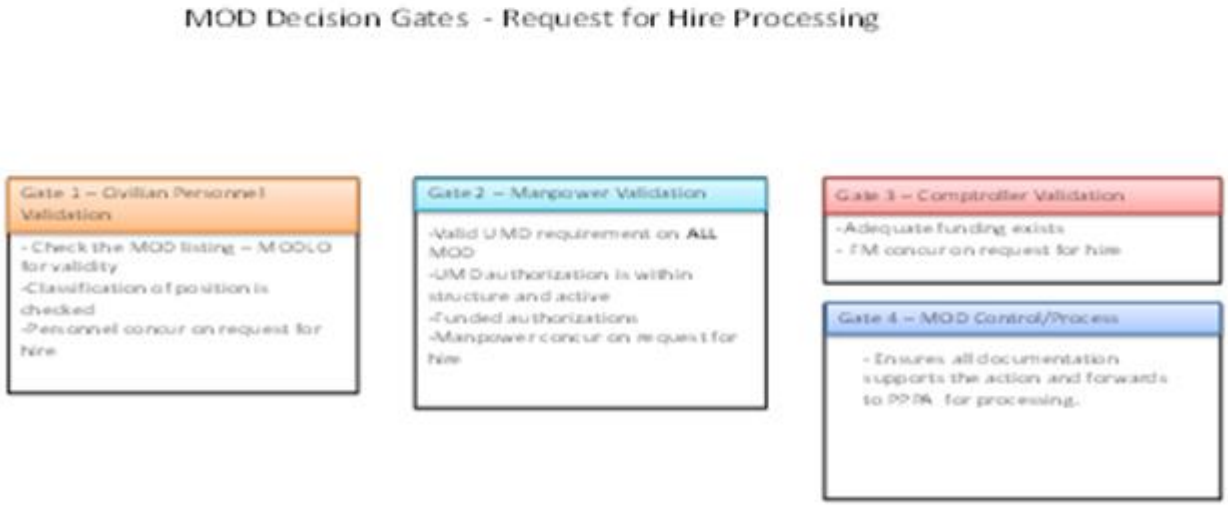


Figure A3.4. Ministry of Defence (MOD) Resource Management Board (MRMB).

Ministry of Defence (MOD) Resource Management Board (MRMB)

- Authority over MOD resource utilization – articles under development
- 3 AF Vice Commander or designee chairs Board
- Board members – (a 3 AF mission advisor), Manpower, Personnel and Comptroller, MOD, JA (as needed)
- MOD resources – funding and authorizations
  - Goal – execute funding in support of the mission
  - Wings defend funded requirements, make case for new or changing mission requirements to Board
  - Comptroller presents budget and funding strategies
  - Manpower tracks funded and unfunded authorizations
  - Civilian Personnel advises on personnel programs for decision support, tracks employees on positions
  - MOD - provides input as to changes to personnel, statistics, etc.
  - JA provides support as needed
- Board convenes at least biannually to review mission priorities
- Redistributes resources as necessary

Attachment 4

AGREEMENT BETWEEN USAFE AND MOD OF THE UK OF GREAT BRITAIN AND NORTHERN IRELAND

Figure A4.1. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Page 1).

ARRANGEMENT

BETWEEN

THE UNITED STATES AIR FORCES IN EUROPE (USAFE)

AND

THE MINISTRY OF DEFENCE (MOD) OF THE UNITED KINGDOM

OF

GREAT BRITAIN AND NORTHERN IRELAND

CONCERNING

THE EMPLOYMENT OF MOD CIVIL SERVANTS ON

UNITED STATES FORCES INSTALLATIONS

(OTHER THAN LOCATIONS FOR WHICH SEPARATE ARRANGEMENTS EXIST)

IN

THE UNITED KINGDOM

includes all revisions from up to 34th CPC meeting

Figure A4.2. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Page 2).

SECTION 1

GENERAL

1.1. This arrangement describes responsibilities, conditions and relationships between MOD and the US Forces for the employment of MOD Civil Servants to provide services to the US Forces in the United Kingdom. This arrangement is undertaken by USAFE on behalf of all US Forces located in the UK. It does not apply to the employment of MOD Civil Servants at US locations for which separate specific arrangements exist.

1.2. The term "local civilian personnel" means all MOD Civil Servants who are assigned for duty under the functional control of the US Forces in appropriated fund activities.

1.3. MOD will recruit, employ, administer and pay all local UK Civilian Personnel requested by US Forces' appropriated fund activities in the UK. US non-appropriated fund activities such as clubs and base exchanges will directly hire, employ and administer local national personnel.

1.4. No binding obligation should be concluded in any negotiation between the MOD and Trade Unions on matters exclusively relating to the provision of this arrangement without concurrence of the US Forces.

1.5. The US Forces will pay for these services by reimbursing MOD their costs arising from providing the services. Such costs include those incurred by employing local civilian personnel for utilization by the US Forces and by MOD employing additional personnel to provide the administrative services covered by this arrangement.

1.6. Conditions of Service. Local civilian personnel assigned by the MOD for duties with the US Forces will enjoy the same conditions of service, rates of pay, rights and privileges and have the same obligations as their counterparts employed elsewhere by the MOD. This includes such features as the provisions of canteen facilities and facilities for Trade Union representatives.

1.7 Suggestion Program. Local civilian personnel assigned by the MOD for duties with the US Forces are authorized to participate in the USAF Innovation Development through Employee Awareness Program (IDEA) as described in AFI 38-401. Comparable US Navy and US Army directives will apply to MOD employees at Navy and Army installations.

Figure A4.3. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Page 3).

SECTION 2

US FORCES RESPONSIBILITIES

2.1. The US Forces will exercise normal management and supervisory prerogatives and responsibilities, observing unless otherwise agreed MOD regulations and practices. US Forces' management functions will include but not be limited to the following:

2.1.1. Determining the number, type and duties of positions required.

2.1.2. Approving applicants for employment put forward by the MOD subject to the need to accept suitable staff from other Government Departments who face redundancy situations.

2.1.3. Recommending reassignments, promotions, reversions and discharges, disciplinary action and retirements. When required, the US Forces will give effect to MOD authorizations on these matters.

2.1.4. Providing an incentive award program.

2.1.5. Determining training needs for US Forces' purposes.

2.1.6. Advising the MOD of potential or actual reductions in force, giving maximum notice so that redundancy procedures can be observed.

2.1.7 Meeting the provisions of the Health and Safety at Work Act that pertain to local civilian personnel.

2.1.8 The provision of prompt information to MODLO/MODPO on all matters affecting the terms and conditions of employment of MoD civilians.

SECTION 3

MINISTRY OF DEFENCE RESPONSIBILITIES.

3.1. In carrying out this Arrangement MOD will exercise normal administrative prerogatives and responsibilities. These will include the following:

3.1.1. Providing an agreed staff to implement its responsibilities under this Arrangement. This staff will consist of appropriate elements of HQ RAF Personnel and Training Command (RAFPTC), a Ministry of Defence Liaison Office, and local Ministry of Defence Personnel Offices. These latter may be referred to as MODLO and MODPO, respectively.

Figure A4.4. Agreement Between USAFE and MOD of the UK of Great Brritain and Northern Ireland (Page 4).

3.1.2. Determining in consultation with the US Forces, the classification and grade of positions.

3.1.3. Providing employees acceptable to the US Forces by transfer or promotion from the same or other MOD establishments or other UK Government Departments, subject to the need to place suitable staff who face redundancy, and by recruiting staff under UK Civil Service arrangements.

3.1.4. Processing appointments, reassignments, promotions, reversions and discharges, disciplinary actions and retirements recommended by the US Forces.

3.1.5. Computing payrolls from appropriate documents and making payments.

3.1.6. When requested, providing orientation and training on UK Civilian Personnel Administration for US Forces' supervisors of local civilian personnel.

3.1.7. Providing orientation and training for newly appointed local civilian personnel at the time of appointment.

3.1.8. Providing statistical data by agreement between MOD and the US Forces.

3.1.9. Taking such action as may be provided for by the regulations at the request of the US Forces and on information supplied by them against local civilian personnel for loss, damage or destruction of US Forces' property or cash through proved negligence or abuse.

3.1.10 Providing advice and guidance to US Forces' managers on all aspects of the day-to-day operation of these arrangements.

3.1.11 Advise US Forces of any changes to and new legislation on Health and Safety at Work.

3.1.12 Conducting Trade Union consultations and negotiations as necessary.

SECTION 4

FINANCIAL RESPONSIBILITIES

4.1. General. Since this arrangement is for mutual defence, the UK agrees that no profit element will be included in any of the costs or charges against the US Forces. Except

Figure A4.5. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Page 5).

where the UK waives charges as a contribution of mutual defence, the US liabilities will be limited to the UK costs as specified below.

4.2. In conformity with paragraph 4.1. above, the US Forces will reimburse MOD for those costs as defined in Annex A relating to local civilian personnel, the staff of MODPOs, and the MODLO.

4.3. Cost Increases. Insofar as possible, the MOD will provide the US Forces with advanced information on charges which will have an effect on total costs for civilian personnel and their administration, such as proposed pay rise percentages, new or increased entitlements, increased national insurance contributions, etc. Detailed estimates are not required.

4.4. Bills.

4.4.1. The MOD will estimate the sums due from the US Forces each week and will present a bill in respect of that amount to the USAF Accounting and Finance Officer (or appropriate US Navy Accounting Officer) at the end of the week. As soon as possible after the end of each month a detailed statement of actual costs will be presented to the USAF. Payment to the MOD in respect of both weekly and monthly accounts will be in accordance with instructions shown on the bill.

4.4.2. Separate bills will be prepared for local civilian personnel and for personnel of MODLO and MODPOs.

4.4.3. The items of cost listed in Annex A will be separately identified.

4.4.4. Explanation of costs will be made available to US Forces on request.

4.5. Audit. The MOD will provide a certificate to the US Forces annually that accounts relating to the charges have been audited in accordance with UK standard procedures and regulations.

SECTION 5

LOGISTIC SUPPORT

5.1. The local US Forces Installation Commander will provide suitable office accommodation, lighting, heating, office furniture and equipment, IT Systems, stationery, reproduction service and telephone, as required by the MODLO and MODPO.

Figure A4.6. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Page 6).

SECTION 6

INTERPRETATION AND AMENDMENT OF THE ARRANGEMENT

6.1. In order to promote an effective and coordinated civilian personnel management program; to provide a means for joint review of administrative services and costs thereof; and to recommend appropriate amendments to this arrangement, a UK-US Forces Civilian Personnel Committee will be established. This committee will be composed of representatives of the Ministry of Defence and of the Headquarters, US Air Forces in Europe, with participation, as may be required, from other elements of HM Government or of the US Forces. Cochairpersons of the Committee will be designated by the MOD and the US Air Forces in Europe, respectively. The Committee will meet on call of either Chairperson; meetings should be held not less frequently than once a year.

6.2. Proposed ammendments to this Arrangement as to matters mutually agreed to by the respective MOD and US Air Force Cochairpersons of the UK-US Forces Civilian Personnel Committee shall become effective upon approval by that Committee.

SECTION 7

EFFECTIVE DATE AND TERMINATION

This arrangement is operative from the and replaces the following arrangement in its entirety:

13th February 1996 Arrangement Between the United States Air Force in Europe (USAFE) and the Ministry of Defence (MOD) of the United Kingdom of Great Britain and Northern Ireland Concerning the Employment of MOD Civil Servants on United States Forces Installations (Other than locations for which separate arrangements exist) in the United Kingdom.

This arrangement may be terminated by either party observing a period of notice of six months.

Figure A4.7. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Annex A).

ANNEX A

REIMBURSABLE COST ITEMS

1. Salaries, wages, and sick pay, excluding the recoverable amounts of maternity benefit. (Personnel will be considered to be on strength for the periods of authorized leave, detached duty, and training).
2. Overtime pay for overtime approved by the appropriate authority.
3. Employers National Insurance Contributions.
4. Contributions toward pensions and gratuities expressed as a percentage in superannuable emoluments.
5. Cost of official issues of MOD clothing, assessed on a capitation basis, or actual approved uniform allowance when authorized by US Forces.
6. Transportation and subsistence expenditures for travel performed by local civilian personnel at the request of US Forces, or by personnel of the MODLO, MODPOs and the agreed number of personnel at the HQ RAFPTC in the performance of administrative services, including such costs arising from training related to the acquisition and maintenance of the skills necessary to fulfill the functions at the US Forces' installations, as approved by appropriate authority.
7. Relocation costs for MODLO and MODPO personnel in the case of initial assignment to, or agreed transfer within these organizations, or to other civilian personnel for whom transfer action is specifically requested or approved in advance by the appropriate US Forces' commander.
8. Other allowances arising from conditions of service as mutually agreed.
9. Medical examinations not provided by US or UK Forces' military medical facilities.
10. Driving licenses for motor transport drivers.
11. Advertising for recruitment of personnel as agreed between the authorized representatives of MOD and the appropriate US Forces' commander.
12. Expenditure incurred through the reimbursement under MOD regulations of expenses incurred by applicants reporting for interview.

Figure A4.8. Agreement Between USAFE and MOD of the UK of Great Britain and Northern Ireland (Annex A continued).

13. MOD administration costs, as mutually agreed, including audit, pay, computer costs, postage poundage, Bank Charges and RAFPTC personnel costs expressed as a percentage of payroll costs.

14. Associated costs for Further Education and Career Development courses which have been authorised by US Forces, but restricted to those courses approved by MOD in accordance with current directives.

15. All compensation and costs associated with applications to Employment Tribunals alleging breaches of employment law by the US Force or its personnel.

16. MOD legal advisor costs relating to determinations as to whether TUPE applies to any US Force outsourcing project.

17. Associated costs for Statutory training/certification/registration e.g. CORGI registration for Gas fitters.

18. Such other costs as may be mutually agreed.

Attachment 5

MOD/U.S. FORCES JOINT GRIEVANCE POLICY

Figure A5.1. MOD/U.S. Forces Joint Grievance Policy (Page 1).

MINISTRY OF DEFENCE (MOD)/UNITED STATES FORCES IN EUROPE (USAFE)

JOINT GRIEVANCE POLICY

1. INTRODUCTION

1.1. The following guidance is applicable to grievances that involve MOD personnel working for the US Forces in the United Kingdom (UK). It has been authorised by the US forces who remain the owners of the policy and it is adopted by the US forces and the MOD UK as a binding policy. It is subject to review not less than every five (5) years by the appropriate Civilian Personnel Officer and subsequent changes will remain subject to consultation. For complaints against MOD officials or colleagues assigned to the USVF bases, complainants should use the MOD Grievance Policy. This policy can be accessed via the MOD Business Support Team assigned to each main USVF installation.

1.2. Most grievances arise from misunderstandings or disputes that can be resolved promptly and satisfactorily on an informal basis. To resolve issues that may result in grievances, the potential grievant is encouraged to contact and discuss their concerns with the other party. However, such discussions prior to the start of the grievance process do not extend any time frames unless mutually agreed to in writing and are not considered as a part of the grievance process.

1.3. This policy specifically covers:

1.3.1. MOD grievances against a US civilian, Local National Direct Hire (LNDH), or military personnel.

1.3.2. US civilian grievances against MOD.

1.3.3. LNDH grievances against MOD employees.

1.3.4. United States Air Forces (USAF) philosophy and practice on maintaining good employee-management relations are just as applicable in handling grievances of MOD personnel, as they are in resolving dissatisfactions of our US personnel or other agencies. Under this policy MOD personnel will be free from restraint, discrimination, or reprisals in making complaints or filing grievances.

2. DEFINITIONS

2.1. Types of Grievances.

2.1.1. Informal grievance. The employee's voluntarily informal written expression of dissatisfaction with regards to a matter of concern which they believe to be a violation of policy, regulation or a specific condition of employment brought voluntarily to the attention of the supervisor for correction.

2.1.2. Formal grievance. A written request by an employee, for personal relief in a matter of concern or dissatisfaction in which they believe to be a violation of policy, regulation or specific condition of employment subject to the control of Air Force management. The following actions or situations cannot be grieved:

2.1.2.1. The content of published local or Air Force policy.

2.1.2.2. Termination by expiry of temporary appointments.

2.1.2.3. Non-adoption of a suggestion, or disapproval of a US sponsored performance award or other kind of honorary or discretionary favour.

2.1.2.4. Actions taken by USAF that are taken in conjunction with law or negotiated agreement.

2.1.2.5. Reductions-in-Force.

Figure A5.2. MOD/U.S. Forces Joint Grievance Policy (Page 2).

2.1.2.6. Separations during a probationary period. Rights of probationary employees will be consistent with UK statutory requirements.

2.2. The Deciding Official. The Deciding Official (DO) is the individual who holds responsibility for impartially reviewing all the evidence of record, giving full and impartial consideration to any reply the employee makes, and determining the final dispensation of the grievance. DO appointment levels are as follows:

2.2.1. Informal Grievance Stage. The DO during this stage is the immediate supervisor or the second-level supervisor, when the immediate level is the subject of the grievance.

2.2.2. Formal Grievance Stage. The DO during this stage is the Squadron Commander or Royal Air Force (RAF) Installation Commander, dependant on the employee who is filing the grievance. In the event the Squadron Commander/RAF Commander is the subject of the formal grievance, the Group Commander/Senior RAF Liaison Officer (SRAFLO) or an equivalent will be appointed the DO.

2.2.3. Appeal Stage. The DO during this stage is the Group Commander or SRAFLO level dependant on the employee who is filing the appeal. In the event the Group Commander/SRAFLO was the appointed DO during the Formal Grievance stage, the DO for the appeal will be the Wing Commander/Group Captain.

2.3. Appointed Investigator. The investigator is an individual appointed by a DO during the formal grievance or appeal stage. The investigator may interview personnel, take sworn statements or testimony, examine and copy any and all relevant Air Force records, files, correspondence connected to the case. The investigator will prepare and submit a Notice of Findings to the DO within the timeframes set.

2.4. Responsibilities of the Civilian Personnel Office and MOD Business Support Teams.

2.4.1. Civilian Personnel Office (CPO). The servicing CPO will provide advisory services for all US Forces, military and LNDH employees and managers on the joint grievance process. The CPO will provide guidance to the investigators and appointed DOs throughout the grievance process.

2.4.2. MOD Business Support Teams (BST). The local servicing BST will provide guidance for all MOD employees on the joint grievance process. The BST will also ensure that all formal grievances are registered with DBS. The BST will provide guidance to the RAF Commander, SRAFLO and Group Captain as appropriate throughout the grievance process.

2.5. Role of the Trade Union Representative or Worker's Companion.

2.5.1. At all stages of the proceedings the individual raising a grievance is entitled to be represented or accompanied by a Trade Union (TU) representative or worker's companion by making a reasonable request.

2.5.2. The MOD recognizes TU's and acts on the behalf of the US to negotiate or consult on any issues requiring TU involvement.

2.5.3. The MOD extends the statutory right of MOD employees to be members of the TU, if they so wish. There are TU officials on base that work for the MOD and represent MOD employees.

2.5.4. A worker's companion may accompany the employee and give advice if necessary. The worker's companion can ask questions but does not have the right to answer questions on the employee's behalf, unless agreed at the start of any meeting by the employee and the supervisor. Only a single worker's companion can be requested. Under the statutory rules the worker's companion must be either a work colleague or be an official TU employee or be certified by the TU as having experience of, or training in, the role of acting as a worker's companion at disciplinary or grievance hearings. If the companion is a fellow worker, the employer must give the companion reasonable time off work to attend meetings and hearings. It may not be reasonable for an employee to request a worker's companion from a remote geographical location if someone suitable and willing is available locally.

Figure A5.3. MOD/U.S. Forces Joint Grievance Policy (Page 3).

2.5.5. If an employee chooses to be accompanied by a TU official, that person is present as a worker's companion and a consultant to the employee and can ask questions, but does not have the right to answer questions on the employee's behalf, unless agreed at the start of any meeting by the employee and the supervisor. This must be made clear at the opening of the meeting by the management official conducting the meeting.

2.5.6. Consultation and/or discussion between the employee and their chosen worker's companion can take place and the meeting can be adjourned for this purpose for a reasonable period of time.

2.5.7. Although legislation indicates that the employer MUST permit the worker's companion to address the hearing in order to put the employee's case forward, sum up the case, respond on the employee's behalf to any views expressed at the meeting and confer with the employee during the hearing. The employer is NOT required to permit the worker's companion to address the hearing if the employee indicates he/she does not wish his/her companion to do so. Should the worker's companion address the hearing, it must be in a manner that does not prevent the employer from explaining his/her case or prevent any other person at the hearing from making a contribution.

2.5.8. Supervisors should understand and make clear from the outset, the role of the worker's companion and to advise that they are not there as a recognized TU official for proposes other than to advise on the issue at hand.

3.2. Alternative Dispute Resolution.

3.2.1. Alternative Dispute Resolution (ADR) techniques, such as mediation or facilitation, will be formally offered at every stage and utilized to the maximum extent possible with the consent of the grievant. ADR reduces the time and costs of settling disputes and empowers Deciding Officials to resolve issues in controversy more creatively and expeditiously.

3.2.2. During ADR, the representative of management participating will have settlement authority. The grievant and management may have a representative to assist and be present during the mediation. Mediations will remain confidential unless otherwise agreed to by both parties. The CPO will maintain a current list of trained mediators for the purposes of ADR at all times and will facilitate arrangements for mediations. If mediation has not been used previously, the parties are strongly encouraged to engage in mediation prior to proceeding in the grievance process This does not affect time limits for invoking arbitration.

4. GRIEVANCE & APPEAL PROCEDURAL STAGES WHEN FILED BY AN MOD EMPLOYEE

4.1. Informal Grievance Stage.

4.1.1. Informal grievances by MOD employees against a US civilian, Local National Direct Hire (LNDH), or military personnel will be submitted by the employee in writing to the immediate supervisor and must be filed prior to filing a formal grievance, unless;

4.1.1.1. The employee's immediate supervisor is the subject of the grievance.

4.1.1.2. The grievance involves bullying/harassment.

4.1.1.3. The grievance involves sexual harassment.

4.1.1.4. Involves a violation of UK employment law.

4.1.2. Time limit for submitting an informal grievance at this stage is not later than thirty (30) days following the date of the situation arising or the date the employee should reasonably have been made aware of the situation.

4.1.3. Informal grievances must include:

Figure A5.4. MOD/U.S. Forces Joint Grievance Policy (Page 4).

4.1.3.1. Identify that this is an informal grievance.

4.1.3.2. A description of the purported violation of policy, regulation or a specific condition of employment that caused the complaint.

4.1.3.3. Identify the date of the incident.

4.1.3.4. The specific personal resolution and desired outcome.

4.1.4. A case file will be initiated by the immediate supervisor and presented to CPO immediately upon submission of the informal grievance. CPO will maintain a complete case file and therefore will be courtesy copied on all correspondence and submissions of documents.

4.1.5. All informal grievances will be thoroughly investigated by the immediate supervisor. In cases where the immediate supervisor is the subject of the grievance, the second level supervisor will conduct the investigation.

4.1.6. Personal information in the case file will be kept to a minimum and will be safeguarded and disposed of in accordance with current applicable US and UK statues.

4.1.7. A decision will be rendered within thirty (30) days of receipt of the complaint. The decision will be rendered to the employee in writing.

4.1.8. All information pertaining to the informal grievance must be maintained two (2) years past the date of conclusion unless otherwise directed by US or UK statute or policy.

4.2. Formal Grievance Stage.

4.2.1. If the grievant is dissatisfied with the informal grievance decision, an employee may choose to file a formal grievance.

4.2.2. For formal grievances the Deciding Official (DO) holds decision authority. DO's for formal grievances are the Squadron Commanders (US). In the event the Squadron Commander is the subject of the formal grievance, the Group Commander or an equivalent Squadron Commander will be appointed the DO.

4.2.3. Formal grievances must be presented in writing to the RAF Commander (RAF/CC) as the Head of Establishment at their Installation through their servicing BST office, within fifteen (15) days after the informal grievance decision is issued.

4.2.4. The grievance must include:

4.2.4.1. The purported violation of policy, regulation or a specific condition of employment.

4.2.4.2. The specific personal relief being sought (i.e. what action the grievant expects management to take).

4.2.4.3. Any additional supporting evidence available at the time.

4.2.4.4. A copy of the informal grievance decision.

4.2.5. Formal grievances may not include additional allegations of violations of policy, regulation or a specific condition of employment that were not included in the grievance.

4.2.6. The servicing BST will conduct a review of the employee's grievance to determine if enough information is present to continue with the formal grievance and that the grievance was submitted within the required timeframe. The BST will reject any submission that does not meet the criteria and notify the employee. If the submission is accepted, the BST office will prepare a case file and obtain informal stage documentation from

Figure A5.5. MOD/U.S. Forces Joint Grievance Policy (Page 5).

the supervisor. The servicing BST office shall notify the CPO of any grievance directed against the US Force, agents or agencies and provide a copy of the grievance case file within five (5) days.

4.2.7. Within five (5) days of receipt of the grievance:

4.2.7.1. CPO will provide the case file to the appropriate DO and courtesy copy the appropriate installation legal office and RAF/CC.

4.2.7.2. The Grievant will be offered the opportunity to meet with the DO. The intent of the meeting is to clarify any information presented in the grievance and to permit an opportunity for resolution if possible. The grievant cannot make any additional allegations which may add to the original grievance submitted during this meeting. At this meeting the individual raising a grievance is entitled to be represented or accompanied by a Trade Union (TU) representative or worker's companion (reference 2.5. Role of the Trade Union Representative or Worker's Companion of this policy).

4.2.7.3. The CPO will be available to provide management advisory service throughout the process.

4.2.8. The DO will commence with the investigation or designate an investigator in writing, within five (5) days.

4.2.8.1. Investigators must be a civilian in grades GS-11 or above or an officer of sufficient rank or position to conduct an independent, unbiased investigation.

4.2.8.2. The investigation is to be completed and a Notice of Findings provided to the DO within twenty one (21) days. If more time is needed, reasonable extensions may be granted by the CPO. The BST will be notified of any extensions and will have the responsibility for notifying the grievant.

4.2.8.3. Only under exceptional circumstances will any investigation exceed a total of forty five (45) days.

4.2.9. The DO will discuss the Notice of Findings with the RAF Commander equivalent within seven (7) days of the completed investigation to obtain concurrence on the findings.

4.2.9.1. If concurrence is achieved, the RAF Commander will coordinate with BST to develop a formal response for the grievant within five (5) days.

4.2.9.2. If concurrence cannot be reached, the DO may request additional facts to support the Notice of Findings and provide clarification to assist in obtaining concurrence. CPO will notify BST of the need for further investigation. BST will give written notification to the employee stating further investigation is needed and the expected timeframe to be accomplished.

4.2.9.3. If after deliberation, a mutually agreed upon decision has not been achieved, the DO's unilateral decision will be submitted to the RAF Commander who will coordinate with BST to develop a written response for the grievant.

4.2.10. Failure to meet established timelines could leave the Air Force vulnerable to outside Agency appeals under UK Employment Law.

4.2.11. Both parties are aware that the MOD or the US Forces may make findings of fact or law against the other party which could support the bringing of legal proceedings by the grievant.

4.3. Appeal Stage.

4.3.1. If the grievant is dissatisfied with the formal grievance decision, the employee may appeal the decision.

4.3.2. DOs for the appeal will be at the next level above the grade of the individual appointed as DO during the grievance Stage.

Figure A5.6. MOD/U.S. Forces Joint Grievance Policy (Page 6).

4.3.3. The appeal must be submitted to the appropriate DO within fifteen (15) days of their receipt of the formal stage decision. No additions or changes to the original grievance will be accepted.

4.3.4. The appeal will be submitted in writing through the BST for forwarding to the CPO. The BST will advise the RAF Commander that an appeal has been submitted and give management advisory service as to the process for appeals under this policy.

4.3.5. The CPO will forward the appeal to the DO for review.

4.3.6. The DO will review the appeal. If additional facts or clarification are required, an investigator may be appointed by the DO. The DO may appoint the same or a different investigator

4.3.6.1. Investigators must be a civilian in grades GS-11, or above or an officer of sufficient rank or position to conduct an independent, unbiased investigation.
4.3.6.2. Upon completion of the investigation, the investigator will present their findings to the DO, BST and CPO in writing.

4.3.7. The DO will discuss the appeal's Notice of Findings with the RAF Commander equivalent to obtain concurrence of the findings.

5.3.7.1. If concurrence is achieved, the DO will coordinate with the CPO who will in turn forward the appeal decision to the BST. The RAF Commander in conjunction with BST will provide a final written response to the grievant within forty five (45) days of receipt of the appeal. For this purpose receipt is defined as the date in which the Appeal was received by the BST.

5.3.7.2. If after deliberation, concurrence cannot be reached, the DO's decision will be submitted to the Wing Commander.

5.3.7.3. If after deliberation, a mutually agreed upon decision has not been achieved at the highest level (Wing Commander and Group Captain). The DO's unilateral decision will be submitted to the BST via CPO. The BST will develop a written response with the RAF Commander for the grievant.

5. GRIEVANCE & APPEAL PROCEDURAL STAGES WHEN FILED BY US FORCES

5.1. Informal Grievance Stage.

5.1.1. Informal grievances by a US civilian, Local National Direct Hire (LNDH) or military personnel against a MOD will be submitted by the employee in writing to the immediate supervisor and must be filed prior to filing a formal grievance, unless;

5.1.1.1. The employee's immediate supervisor is the subject of the grievance.

5.1.1.2. The grievance involves bullying/harassment.

5.1.1.3. The grievance involves sexual harassment.

5.1.1.4. Involves a violation of UK employment law.

5.1.2. Time limit for submitting an informal grievance at this stage is no later than thirty (30 days following the date of the situation arising or the date the employee should reasonably have been made aware of the situation. Grievances relating to occurrences more than fifteen (15) days from the date of the situation will only be accepted when they represent a continuing pattern of conduct, or where information has come to light that could not have previously been known.

5.1.3. Informal grievances must include:

Figure A5.7. MOD/U.S. Forces Joint Grievance Policy (Page 7).

5.1.3.1. Identify that this is an informal grievance.

5.1.3.2. A description of the purported violation of policy, regulation or a specific condition of employment that caused the complaint.

5.1.3.3. Identify the date of the incident.

5.1.3.4. The specific personal relief being sought (i.e. what action the grievant expects management to take).

5.1.4. All informal grievances will be thoroughly investigated by the immediate supervisor. In cases where the immediate supervisor is the subject of the grievance, the second level supervisor will conduct the investigation.

5.1.5. A case file will be initiated by the immediate supervisor and presented to CPO immediately upon submission of the informal grievance. CPO will maintain a complete case file and therefore will be courtesy copied on all correspondence and submissions of documents.

5.1.6. Personal information in the case file will be kept to a minimum and will be safeguarded and disposed of in accordance with *Privacy Act Information 1974* and *UK Data Protection Act Requirements 1998.*

5.1.7. A decision will be rendered within thirty (30) days of receipt of the complaint. The decision will be rendered to the employee in writing.

5.1.8. All information pertaining to the informal grievance must be maintained two (2) years past the date of conclusion unless otherwise directed by US or UK statute or policy.

5.2. Formal Grievance Stage.

5.2.1. If the grievant is dissatisfied with the informal grievance decision, an employee may choose to file a formal grievance.

5.2.2. For formal grievances the Deciding Official (DO) holds decision authority. DO's for formal grievances are the RAF Commanders. In the event the RAF Commander is the subject of the formal grievance, the SRAFLO or an equivalent RAF Commander will be appointed the DO.

5.2.3. Formal grievances must be presented in writing to the DO through their servicing CPO within fifteen (15) days after the informal grievance decision is issued.

5.2.4. The grievance must include:

5.2.4.1. The purported violation of policy, regulation or a specific condition of employment.

5.2.4.2. The specific personal relief being sought (i.e. what action the grievant expects management to take).

5.2.4.3. Any additional supporting evidence available at the time.

5.2.4.4. A copy of the informal grievance decision

5.2.5. Formal grievances may not include additional allegations of violations of policy, regulation or a specific condition of employment that were not included in the informal grievance.

5.2.6. The servicing CPO will conduct a review of the employee's grievance to determine if enough information is present to continue with the formal grievance and that the grievance was submitted within the required timeframe. The CPO will reject any submission that does not meet the criteria and notify the employee. If the submission is accepted, the CPO will prepare a case file and obtain informal stage

Figure A5.8. MOD/U.S. Forces Joint Grievance Policy (Page 8).

documentation. The CPO shall notify the servicing BST office of any grievance and provide a copy of the grievance case file within five (5) days.

4.2.7. Within five (5) days of receipt of the grievance:

4.2.7.1. BST will provide the case file to the appropriate DO and courtesy copy the applicable US Commander appropriate equivalent and installation legal office will be courtesy copied.

4.2.7.2. A meeting to discuss the grievance must be held between the DO and grievant. The grievant cannot make any additional allegations which may add to the original grievance submitted during this meeting. At this meeting the individual raising a grievance is entitled to be represented or accompanied by a Trade Union (TU) representative or worker's companion.

4.2.7.3. The CPO and BST will be available to provide management advisory service throughout the process.

5.2.8. The DO will commence with the investigation or designate an investigator in writing within five (5) days.

5.2.8.1. Investigators must be a civilian in grade Band D or above, or an officer of sufficient rank, or position to conduct an independent unbiased investigation.

5.2.8.2. The investigation will be completed and a Notice of Findings provided to the DO within twenty one (21) days. If more time is needed, reasonable extensions may be granted by the BST. CPO will be notified of any extensions and will have responsibility for notifying the grievant.

5.2.8.3. Under no circumstances will any investigation exceed a total of forty five (45) days.

5.2.9. The DO will discuss the Notice of Findings with the US Commander equivalent within seven (7) days of the completed investigation to obtain concurrence on the findings.

5.2.9.1. If concurrence is achieved, the US Commander will coordinate with the CPO to develop a written response for the grievant within five (5) days.

5.2.9.2. If concurrence cannot be reached, the DO may request additional facts to support the Notice of Findings and provide clarification to assist in obtaining concurrence. BST will notify the CPO of the need for further investigation. CPO will give written notification to the employee stating further investigation is needed and the expected timeframe to be accomplished.

5.2.9.3. If after deliberation, a mutually agreed upon decision has not been achieved, the DO's unilateral decision will be submitted to the US Commander who will coordinate with the CPO to develop a written response for the grievant.

5.2.10. Failure to meet established timelines could leave the Air Force vulnerable to outside Agency appeals.

5.2.11. Both parties are aware that the MOD or the US Forces may make findings of fact or law against the other party which could support the bringing of legal proceedings by the grievant.

5.3. Appeal Stage.

5.3.1. If the grievant is dissatisfied with the formal grievance decision, the employee may appeal the decision.

5.3.2. DOs for the appeal will be at the next level above the grade of the individual appointed as DO during the formal grievance Stage.

5.3.3. The appeal must be submitted to the appropriate DO within fifteen (15) days of their receipt of the formal stage decision. No additions or changes to the original grievance will be accepted.

Figure A5.9. MOD/U.S. Forces Joint Grievance Policy (Page 9).

5.3.4. The appeal will be submitted in writing through the CPO for forwarding to the BST. CPO will advise the US Commander that an appeal has been submitted and give management advisory service as to the process for appeals under this policy. In addition, the CPO will also provide a copy of the appeal to the installation legal office.

5.3.5. The BST will forward the appeal to the DO for review.

5.3.6. The DO will review the appeal. If additional facts or clarification are required, an investigator may be appointed by the DO.

5.3.6.1. Investigators must be a civilian in grade Band D or above, or an officer of sufficient rank, or position to conduct an independent unbiased investigation.

5.3.6.2. Upon completion of the investigation, the investigator will present their findings to the DO, BST and CPO in writing.

5.3.7. The DO will discuss the appeal's Notice of Findings with the US Commander equivalent to obtain concurrence of the findings.

5.3.7.1. If concurrence is achieved, the DO will coordinate with the BST who will in turn forward the appeal decision to the CPO. The US Commander in conjunction with CPO will provide a final written response to the grievant within forty five (45) days of receipt of the appeal. For this purpose receipt is defined as the date in which the Appeal was received by the CPO.

5.3.7.2. If after deliberation, concurrence cannot be reached, the DO's decision will be submitted to the Group Captain.

5.3.7.3. If after deliberation, a mutually agreed upon decision has not been achieved at the highest level (Wing Commander and Group Captain). The DO's unilateral decision will be submitted to the BST who will forward to the CPO. The CPO will develop a written response with the US Commander for the grievant.

5.4. Grievance Termination. A grievance will terminate:

5.4.1. At the grievant's request.

5.4.2. Upon termination of employment with the MOD, unless personal relief to the employee may be granted after termination of employment.

5.4.3. Upon the death of the employee, unless the grievance involves a question of pay.

5.4.4. Upon failure by the grieving party to meet time limits, or to request and receive an extension of time, unless mitigating circumstances prevail.

6. DISCLOSURE. Disclosure of investigation Notice of Findings will be made available by CPO to the grievant if requested. All restrictions to MOD policies and applicable US policies will be adhered to.

7. FINAL MAINTENANCE OF DOCUMENTATION. Copies of all documentation raised in relation to the processing of a grievance through this procedure should be retained at the BST/CPO office for two (2) years past the date of conclusion.

29 Jan 15

MS FIONA WHITE
D Res, Secretariat & Civilian Workforce
Air Command

7 Oct 14

MS. MONIQUE BOTTING
Chief, Personnel Division
HQ USAFE-AFARICA/AIK

Figure A5.10. MOD/U.S. Forces Joint Grievance Policy (Addendum 1).

ADDENDUM 1

A1. THIS PROCEDURE APPLIES TO FORMAL GRIEVANCES FILED BY MOD EMPLOYEES UPON COMPLETION OF THE STEP 1 INFORMAL STAGE

Established Timeline	Summary of Formal Grievance Procedure
Timeline begins the date BST receives grievance…	1. BST - Filing A Formal Grievance Grievant submits formal grievance in writing to BST within fifteen (15) calendar days of the incident/occurrence. Receipt of grievance by BST begins the time frames outlined below.
5 calendar days	2. BST – Formal Grievance Review BST reviews the employee's complaint to determine if the grievance meets the established criteria The grievance package must contain the following: 1. Package must have been submitted within fifteen (15) calendar days of the incident/occurrence, unless the grievance is related to an on-going pattern of conduct. 2. Package must outline the reasons why the employee considers the action improper; 3. Package must specifically outline the remedy (i.e. what the grievant wants management to do. The BST will seek clarity from the employee if needed. If the above conditions are not met, BST rejects the package and notifies the grievant. Once the grievance has been substantiated to move forward as a formal grievance, the BST will: 1. Obtain Step 1 informal stage documentation from the immediate supervisor 2. Prepare a formal grievance personnel case file 3. Notify CPO and provide them with a copy of the case file
5 calendar days	3. CPO CPO will: a. Advise the appropriate Deciding Official (DO) that a grievance has been submitted and provide the case file b. Assist in management advisory service of the role and responsibility for the processing of the grievance c. Provide a copy of the grievance to the appropriate Installation Legal Office and RAF/CC.
5 calendar days	4. DO Conducts the investigation and/or designates an investigator in writing. NOTE: Investigators must be of sufficient position to conduct an independent, unbiased investigation.
21-45 calendar days	5. DO or Investigator The investigator will: a. Conduct an investigation to ascertain the facts surrounding the grievance. b. Submit Notice of Findings and supporting documentation to the appropriate DO within twenty one (21) days. c. Extensions to the investigation may be granted by CPO, not to exceed forty five (45) days in total. d. The CPO will notify the BST office of the extension. e. BST office will provide written notification to the employee of the extension.

Figure A5.11. MOD/U.S. Forces Joint Grievance Policy (Addendum 1 continued).

7 calendar days	6. DO – Concurrence DO will: a. Ensure the investigation was conducted in accordance with all applicable guidance b. Discuss the report of findings with the RAF Commander equivalent. c. A concurrence of the findings between the RAF Commander and DO will be made. d. CPO and BST notified.
(Timeframe to be established upon further investigation)	7. DO - Occasions of Non-concurrence In occasions of non-concurrence between DO and RAF Commander: a. DO will reopen the grievance for further investigation. b. CPO will notify to the BST office as to the need for further investigation c. BST will give written notification to the employee stating further investigation is needed and the expected timeframe to be accomplished.
5 calendar days	8. Employee Formal Notification RAF Commander in conjunction with BST will: a. Respond to grievant providing him/her the written letter to present the results of the investigation. b. Include the employees appeal rights, which must be submitted within fifteen (15) calendar days after receipt of findings. c. Employee will sign acknowledging receipt of the letter of notification. Receipt of notification of findings does not imply agreement to the findings.

Figure A5.12. MOD/U.S. Forces Joint Grievance Policy (Addendum 2).

ADDENDUM 2
A2. THIS PROCEDURE APPLIES TO GRIEVANCE APPEALS WHEN FILED BY MOD EMPLOYEES

Established Timeline	**Summary of Appeal Procedure**
Timeline begins the date BST receives appeal… ↓ 45 calendar days	1. BST - Appeal Submission Appeals are submitted to the BST office. BST shall check for: a. Timely submission – within fifteen (15) calendar days of notification of employee notice of findings on original grievance. b. Clarity of appeal – all pertinent documentation has been submitted with appeal and employee has outlined the problem with the original decision of the grievance along with desired remedy. NOTE: Any appeal with insufficient documentation or does not meet the time requirements will be returned via written notice by the CPO to the employee who filed the appeal. Once accepted, the BST Office will: a. Complete the appeal packages – Build case file. b. Forward the appeal to CPO. c. BST will notify the SRAFLo that an appeal has been filed and will provide a copy of the appeal.
	2. CPO Forward the appeal to the appropriate DO for review, courtesy copying the appropriate Installation Legal Office and SRAFLo.
	3. DO - Review DO will: a. Review the appeal package and determine whether an additional investigation is necessary. b. If an additional investigation is required, the DO will appoint an investigator. Upon completion of the investigation, the investigator will present the findings to the DO and CPO in writing. c. The DO and SRAFLO equivalent will discuss the appeal investigation to come to concurrence of the findings.
	4. DO – Decision DO will communicate decision to CPO, who will intern forward the decision to the BST.
	5. Employee Notification RAF Commander in conjunction with BST will: a. Respond to grievant providing him/her the written letter to present the results of the appeal investigation. b. Employee will sign acknowledging receipt of the letter of notification. Receipt of notification of findings does not imply agreement to the findings.
DECISION IS FINAL	

Figure A5.13. MOD/U.S. Forces Joint Grievance Policy (Addendum 3).

ADDENDUM 3
A3. THIS PROCEDURE APPLIES TO FORMAL GRIEVANCES WHEN FILED BY US FORCES UPON COMPLETION OF THE STEP 1 INFORMAL STAGE

Established Timeline	Summary of Formal Grievance Procedure
Timeline begins the date CPO receives grievance…	1. CPO - Filing a Formal Grievance Grievant submits formal grievance in writing to CPO within fifteen (15) calendar days of the incident/occurrence. Receipt of grievance by CPO begins the time frames outlined below.
5 calendar days	2. CPO – Formal Grievance Review CPO reviews the employee's complaint to determine if the grievance meets the established criteria The grievance package must contain the following: a. Package must have been submitted within fifteen (15) calendar days of the incident/occurrence, unless the grievance is related to an on-going pattern of conduct. b. Package must outline the reasons why the employee considers the action improper; c. Package must specifically outline the remedy (i.e. what the grievant wants management to do. The CPO will seek clarity from the employee if needed. If the above criteria are not met, CPO rejects the package and notifies the grievant. Once the grievance has been substantiated to move forward as a formal grievance, the CPO will: a. Obtain Step 1 informal stage documentation from the immediate supervisor. b. Prepare a formal grievance personnel case file. c. Notify Business Support Team (BST) and provide them with a copy of the case file.
5 calendar days	3. BST BST will: a. Advise the appropriate Deciding Official (DO) that a grievance has been submitted and provide the case file. b. Assist in management advisory service of the role and responsibility for the processing of the grievance. c. Provide a copy of the grievance to the appropriate Installation Legal Office and US Commander.
5 calendar days	4. DO Conducts the investigation and/or designates an investigator in writing. NOTE: Investigators must be of sufficient position to conduct an independent, unbiased investigation.
21-45 calendar days	5. DO or Investigator The investigator will: a. Conduct an investigation to ascertain the facts surrounding the grievance. b. Submit Notice of Findings and supporting documentation to the appropriate DO within twenty one (21) days. c. Extensions to the investigation may be granted by BST, not to exceed forty five (45) days in total. d. The BST will notify the CPO office of the extension. e. CPO will provide written notification to the employee of the extension.

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Figure A5.14. MOD/U.S. Forces Joint Grievance Policy (Addendum 3 continued).

7 calendar days	6. DO – Concurrence DO will: a. Ensure the investigation was conducted in accordance with all applicable guidance b. Discuss the report of findings with the US Commander equivalent. c. A concurrence of the findings between the DO and US Commander will be made. d. CPO and BST notified.
(Timeframe to be established upon further investigation)	7. DO - Occasions of Non-concurrence In occasions of non-concurrence between the DO and US Commander: a. DO's reopens the grievance for further investigation. b. BST will notify to CPO as to the need for further investigation. c. CPO will give written notification to the employee stating further investigation is needed and the expected timeframe to be accomplished.
5 calendar days	8. Employee Formal Notification US Commander in conjunction with CPO will: a. Respond to grievant providing him/her the written letter to present the results of the investigation. b. Include the employees appeal rights, which must be submitted within fifteen (15) calendar days after receipt of findings. c. Employee will sign acknowledging receipt of the letter of notification. Receipt of notification of findings does not imply agreement to the findings

Figure A5.15. MOD/U.S. Forces Joint Grievance Policy (Addendum 4).

ADDENDUM 4
A4. THIS PROCEDURE APPLIES TO GRIEVANCE APPEALS WHEN FILED BY US FORCES

Established Timeline	Summary of Formal Grievance Procedure
Timeline begins the date CPO receives appeal…	1. CPO - Appeal Submission Appeals are submitted to the CPO office. CPO shall check for: a. Timely submission – within fifteen (15) calendar days of notification of employee notice of findings on original grievance. b. Clarity of appeal – all pertinent documentation has been submitted with appeal and employee has outlined the problem with the original decision of the grievance along with desired remedy. NOTE: Any appeal with insufficient documentation or does not meet the time requirements will be returned via written notice by the BST to the employee who filed the appeal. Once accepted, the CPO Office will: a. Complete the appeal packages – Build case file. b. Forward the appeal to BST. c. CPO office will notify the US Commander that an appeal has been filed and provide a copy of the appeal.
	2. BST Forward the appeal to the appropriate DO for review, courtesy copying the appropriate Installation Legal Office and RAF/CC.
	3. DO - Review DO will a. Review the appeal package and determine whether an additional investigation is necessary. b. If an additional investigation is required, the DO will appoint an investigator. Upon completion of the investigation, the investigator will present the findings to the DO and CPO in writing. c. The DO and the US Commander equivalent will discuss the investigation results to come to concurrence of the findings.
	4. DO – Decision DO will communicate the decision to BST, who will intern forward the decision to the CPO.
45 calendar days	5. Employee Notification RAF Commander in conjunction with BST will: a. Respond to grievant providing him/her the written letter to present the results of the appeal investigation. b. Employee will sign acknowledging receipt of the letter of notification. Receipt of notification of findings does not imply agreement to the findings.
DECISION IS FINAL	